

The Statute, Rules and Regulations on Constitution, Powers and Functions of the Authorities of MCKV Institute of Engineering (An Autonomous Institution)

By virtue of the autonomous statue granted by the University Grants Commission to MCKV Institute of Engineering (MCKVIE), under Maulana Abul Kalam Azad University of Technology (MAKAUT), West Bengal and in exercise of the powers conferred by Mirzamal Chhaganlal Kejriwala Charity Trust, the Governing Body of MCKVIE makes the following statues relating to constitution, powers and functions of the authorities of MCKVIE, referred to as the Statue.

CHAPTER-I: Preliminary

1.1 Short Title and Commencement

These Regulations shall be called "The MCKV Institute of Engineering (Autonomous) Regulations" and will be applicable to all existing employees and students of the Institute and to be recruited hereafter. These Regulations supersede all rules previously in force and shall be deemed to have come into force with the approval of the Governing Body on and from the date as may be specified by a resolution adopted in a meeting of the Governing Body.

NOTE: The Institute shall be a body corporate by the name as The MCKV Institute of Engineering (Autonomous), having perpetual succession and common seal, with power, subject to the provisions of the Regulations, to acquire and hold property and to contract, and shall, be the said name, sue and be sued.

In all suits and other legal proceedings by or against the Institute, the pleadings shall be signed and verified by the Principal and all processes in such suits and proceedings shall be issued to and served on the Principal.

1.2 Interpretation

- (i) In the event of any doubt about the interpretation of any clause or phrase or any rule made under these Regulations, the interpretation and/or clarification given by the Governing Body of the Institute is final and binding on all concerned.
- (ii) Notwithstanding anything contained in these Regulations, the Governing Body shall have the powers to decide on any matter when any difficulty arises regarding the interpretation or implementation of any of the Regulations.
- (iii) If there is any conflict between the MCKV Institute of Engineering Autonomous Regulations in English and those in any other language or languages, the English version shall prevail and be followed.

1.3 Definitions

- (i) In these Regulations, unless the context requires otherwise, the following words and phrases have meanings hereby assigned to them:
- (ii) 'Regulations' mean 'the MCKV Institute of Engineering Autonomous Institute Regulations'.
- (iii) 'Governing Body' means the Governing Body of MCKV Institute of Engineering and includes in relation to the exercise of powers any Committee of the Board or any Officer of the Institute to whom the Board delegates any of its powers.
- (iv) 'Academic Council' means the Academic Council of MCKV Institute of Engineering.
- (v) 'Board of Studies' means the Board of Studies of MCKV Institute of Engineering.
- (vi) 'Finance Committee' means the Finance Committee of MCKV Institute of Engineering.
- (vii) 'Planning and Evaluation Committee' means the Planning and Evaluation Committee of MCKV Institute of Engineering.
- (viii) 'Grievance Redressal Committee' means the Grievance Redressal Committee of MCKV Institute of Engineering.
- (ix) 'Disciplinary Committee' means the Disciplinary Committee of MCKV Institute of Engineering.
- (i) 'Admission Committee' means the Admission Committee of MCKV Institute of Engineering.
- (ii) 'Library Committee' means the Library Committee of MCKV Institute of Engineering.
- (iii) 'Students' Welfare Committee' means the Students' Welfare Committee of MCKV Institute of Engineering.
- (iv) 'Internal Complaints Committee (against sexual harassment)' means the Internal Complaints Committee of MCKV Institute of Engineering.
- (v) 'Academic Audit Committee' means the Academic Audit Committee of MCKV Institute of Engineering.
- (vi) 'Chairman' means the Chairman of the Governing Body of MCKV Institute of Engineering and in case of Committees, 'Chairman' means the Chairman of the concerned committee.
- (vii) 'Principal' means the Principal of MCKV Institute of Engineering.
- (viii) 'Registrar' means the Registrar of MCKV Institute of Engineering.
- (ix) 'Head of Department' means the Head of the Department of MCKV Institute of Engineering.
- (x) 'Controller of Examinations' means the Controller of Examinations of MCKV Institute of Engineering.
- (xi) 'Finance Officer' means the Finance Officer of MCKV Institute of Engineering.
- (xii) 'Librarian' means the Librarian of MCKV Institute of Engineering.
- (xiii) 'Purchase Officer' means the Purchase Officer of MCKV Institute of Engineering.



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

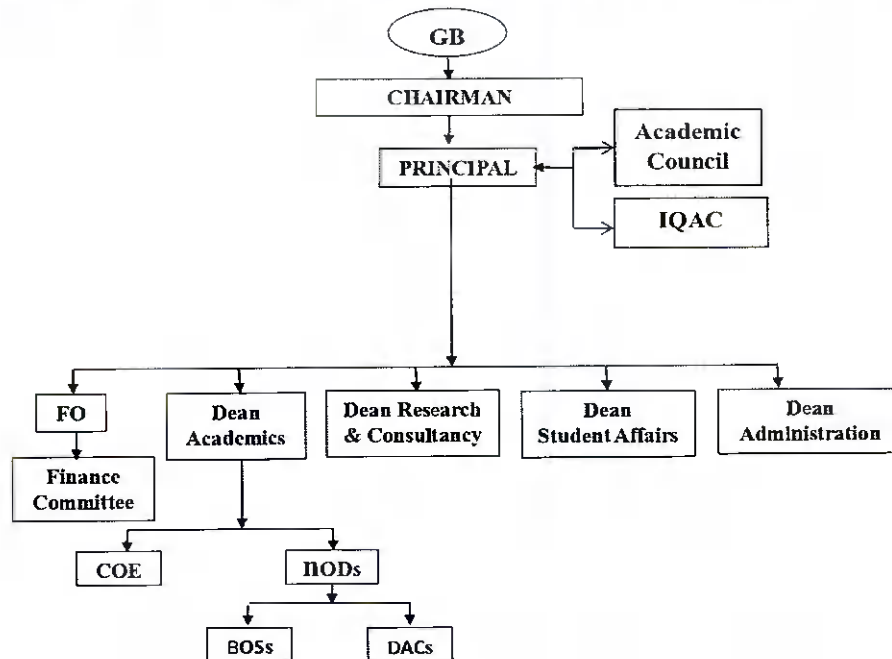
- (xiv) 'The Competent Authority' or 'the Management' in relation to exercise of any power, means any Authority to which the power is delegated by or under these Rules and includes the Chairman, the Principal and the Registrar of MCKV Institute of Engineering.
- (xv) 'Disciplinary Authority' means the Authority to whom powers for taking disciplinary actions are delegated by the Competent Authority of MCKV Institute of Engineering and includes an Authority superior to such Authority.
- (xvi) 'Disciplinary action' and/or 'discipline' means and includes reprimand, probation, suspension, dismissal, monetary fine, restitution, and any other action taken against student as sanction or penalty for violation of a designated rule of student conduct.
- (xvii) 'Employee' means a person holding a specific post of the Institute in a substantive, temporary or officiating capacity for which he is paid remuneration by the Institute. 'Employee' includes both Teacher and non-teaching Staff including Officer of MCKV Institute of Engineering.
- (xviii) 'The Institute' means the MCKV Institute of Engineering having its permanent location at 243 G. T. Road (N), Liluah, Howrah-711204, West Bengal.
- (xix) 'Student' mean the students of MCKV Institute of Engineering.
- (xx) 'Masculine' means and includes feminine also.

1.4 Organizational Chart

Effective policy implementation requires Institute administration to consider number of factors including how to organization should be structured to put the policy in to effect. Since all policies are to be implemented by the employees of the Institute organization defines the positions and the role of employees at various levels with regard to such implementation. Organizational structure involves arrangement of activities and assignment of personnel to these activities in order to achieve the organizational goals in an efficient manner.

abhinav
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

ORGANIZATIONAL STRUCTURE



GB-Governing Body, DAC – Departmental Academic Committee, COE-Controller of Examination, FO – Finance Officer

abhinav
PRINCIPAL
 MCKV INSTITUTE OF ENGG.
 LILUAH, HOWRAH - 711204



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

1.5 Powers and Functions of the Institute

MCKV Institute of Engineering shall have the following powers and functions:

- (i) To provide for instruction and research in such branches or Engineering and Technology, Basic Sciences and Humanities & Social Science, as the Institute may think fit, and for the advancement of learning and dissemination of knowledge in such branches.
- (ii) To hold examinations in accordance with the guidelines framed by the affiliating University.
- (iii) To Institute and award scholarship, prizes and medals.
- (iv) To fix, demand and receive fee and other charges based on norms stipulated by the State Government.
- (v) To establish, maintain and manage hostels for the residents of students and to regulate the discipline of the students.
- (vi) To create academic, technical, administrative and other posts with prior approval of the Governing Body and to make appointments thereto.
- (vii) To regulate and enforce discipline among the employees (teaching and non-teaching staff) of the Institute and to take such disciplinary measures as may be deemed necessary.
- (viii) To provide for printing, reproduction and publication research and other works and to organize exhibitions.
- (ix) To co-operate with any other organizations in the matter of education, training and research in Science & Technology and allied subjects for such purposes as may be agreed upon on such terms and conditions as the Institute may from time to time determine.
- (x) To cooperate with Institutions of higher learning in any part of the world having objective wholly or partially similar to these of the Institute, by exchange of faculty members and scholars and generally in such manner as may be conducive to their common objectives.
- (xi) To regulate the expenditure and to manage the accounts of the Institute.
- (xii) To establish and maintain within the premises of the Institute such class rooms, study halls, laboratories, workshops as the Institute may consider necessary and adequate and to establish and maintain such libraries and reading rooms as may appear convenient or necessary for the Institute.
- (xiii) To receive grants, donations and gifts for the purpose of the Institute and consistent with the objectives for which the Institute is established.
- (xiv) To purchase, take on lease or accept as gifts or otherwise, any land or building or works, which may be necessary or convenient for the purpose of the Institute, on such terms and conditions as it may think fit and proper, and to construct or to alter and maintain any such building or works.

alohini

- (xv) To enter into any agreement with the Central Government or State Government or the Government of any other state or the UGC/AICTE or any other Authorities for receiving grants.
- (xvi) To invest the funds of the Institute or the money entrusted to the Institute in or upon such securities and in such manner as it may deem fit.
- (xvii) To make, from time to time, such regulations as may be considered necessary for regulating the affairs of the management of the Institute and to alter, modify or rescind such regulations.
- (xviii) To regulate for the benefit of the academic, technical, administrative and other staff, in such manner and subject to such conditions as may be prescribed by regulations, Provident Fund, Gratuity etc. as it may deem fit.
- (xix) The execute powers of the Institute shall vest in the Governing Body. The Board may in turn delegate any of its powers, to any of the Committee or Committees constituted by it or to any officer or officers of the Institute.
- (xx) To do such other acts and things as the Institute may consider necessary, conducive or incidental to the attainment or enlargement of the objectives of the Institute.

1.6 Action not invalidated merely on the ground of defect in constitution, vacancy etc.

- (i) Notwithstanding that the Governing Body, the Academic Council, the Board of Studies, the Finance Committee or any other Authority or Committee of the Institute is not duly constituted or there is a defect in its constitution or reconstitution at any time or there is a vacancy in the membership of any such Authority or Committee, no act or proceedings of such Authority or Committee shall be deemed to be invalid on any such ground or grounds.
- (ii) No resolution of any Authority or Committee of the Institute shall be deemed to be invalid on account of any irregularity in the service of notice upon any member, provided that the proceedings of such Authority or Committee were not prejudicially affected by such irregularity.

1.7 Indemnity

No suit, prosecution or other legal proceedings shall lie against and no damages shall be claimed from the Institute, the Principal, the Authorities or Officer of the Institute, or in any other person in respect of anything which is in good faith done or purported to have been done in pursuance of the Regulations.

1.8 Regulations to have overriding effect

The provisions of these Regulations shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any instrument having effect by virtue of any law other than this Regulations.

alshini
PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

CHAPTER-II: Authorities of the Institute and their Powers and Functions

STATUTORY COMMITTEES

To ensure proper Governance of the Institute and to provide smooth functioning of proper management, academic & general administrative affairs, Four Statutory Bodies have been constituted. They are – (i) Governing Body, (ii) The Academic Council, (iii) The Board of Studies and (iv) The Finance Committee. Details are as follows:

2.1 Governing Body

The Management of the Institute shall be vested in the Governing Body which is the plenary and ultimate decision making Authority of the Institute. The members are luminaries from the engineering field, industrialist, high profile academicians, experienced administrators and management professionals.

2.1.1 Composition

Nmber	Category	Natnre
5 Members	Management	Trust or management as per the constitution or byelaws, with the Chairman or President/Director as the chairperson
2 Members	Faculty members of the College	Nominated by the Principal based on seniority by rotation
1 Members	Educationist or industrialist	Nominated by the management
1 Members	UGC Nominee	Nominated by the UGC
1 Members	State Government nominee	Academician not below the rank of professor or State Government official of Directorate of Higher Education/State Council of Higher Education
1 Members	University Nominee	Nominated by the University
1 Members	Principal of College	Ex-Officio

2.1.2 Term

The Governing Body shall be reconstituted every three years except in the case of UGC nominee who shall have a term of five years.

2.1.3 Meetings

Meetings of the Governing Body shall be held at least twice a year.

2.1.4 Functions of the Governing Body

Subject to the existing provision in the bye-laws of respective college and rules laid down by the state government/parent university, the Governing Body shall:

- (i) Guide the college while fulfilling the objectives for which the college has been granted autonomous status.
- (ii) Institute scholarships, fellowships, studentships, medals, prizes and certificates on the recommendations of the Academic Council.
- (iii) Approve new programmes of study leading to degrees and/or diplomas.
- (iv) All recruitments of Teaching Faculty/Principal shall be made by the Governing Body/state government as applicable in accordance with the policies laid down by the UGC and State Government from time to time.
- (v) To approve annual budget of the college before submitting the same at the UGC.
- (vi) Perform such other functions and institute committees, as may be necessary and deemed fit for the proper development of the college

2.2 Academic Council

The Academic Council is the main Academic Authority of the Institute. It manages the academic affairs of the Institute and functions under the direct control and supervision of the Governing Body.

2.2.1 Composition

- (i) The Principal (Chairman)
- (ii) All the Heads of Departments in the college
- (iii) Four faculty members of the college representing different categories of teaching staff by rotation on the basis of seniority of service in the college.
- (iv) Not less than four experts/academicians from outside the college representing such areas as Industry, Commerce, Law, Education, Medicine, Engineering, Sciences etc., to be nominated by the Governing Body.
- (v) Three nominees of the university not less than Professors.
- (vi) A faculty member nominated by the Principal (Member Secretary).

2.2.2 Term

The term of the nominated members shall be three years.

2.2.3 Meetings

Academic Council shall meet at least twice a year.

2.2.4 Functions of the Academic Council:

The Academic Council shall have powers to:

- (i) Scrutinize and approve the proposals with or without modification of the Boards of Studies with regard to courses of study, academic regulations, curricula, syllabi and modifications thereof, instructional and evaluation arrangements, methods, procedures relevant thereto etc., provided that where the Academic Council differs on any proposal, it shall have the right to return the matter for reconsideration to the Board of Studies concerned or reject it, after giving reasons to do so.
- (ii) Make regulations regarding the admission of students to different programmes of study in the college keeping in view the policy of the Government.

- (iii) Make regulations for sports, extra-curricular activities, and proper maintenance and functioning of the playgrounds and hostels.
- (iv) Recommend to the Governing Body proposals for institution of new programmes of study.
- (v) Recommend to the Governing Body institution of scholarships, studentships, fellowships, prizes and medals, and to frame regulations for the award of the same.
- (vi) Advise the Governing Body on suggestions(s) pertaining to academic affairs made by it.
- (vii) Perform such other functions as may be assigned by the Governing Body.

2.3 Board of Studies

The Board of Studies is an academic wing of the Institute and functions under the direct control and supervision of the Academic Council of the Institute.

2.3.1 Composition

- (i) Head of the Department concerned (Chairman).
- (ii) The entire faculty of each specialization.
- (iii) Two subject experts from outside the Parent University to be nominated by the Academic Council.
- (iv) One expert to be nominated by the Vice-Chancellor from a panel of six recommended by the college principal.
- (v) One representative from industry/corporate sector/allied area relating to placement.
- (vi) One postgraduate meritorious alumnus to be nominated by the principal. The Chairman, Board of Studies, may with the approval of the principal of the college, co-opt:
 - i. Experts from outside the college whenever special courses of studies are to be formulated.
 - ii. Other members of staff of the same faculty.

2.3.2 Term

The term of the nominated members shall be three years.

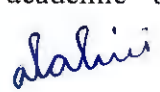
2.3.3 Meetings

The board of studies Council shall meet at least twice a year.

2.3.4 Functions of the Board of Studies

The Board of Studies of a Department in the Institute shall:

- (i) prepare syllabi for various courses keeping in view the objectives of the college, interest of the stakeholders and national requirement for consideration and approval of the Academic Council;
- (ii) suggest methodologies for innovative teaching and evaluation techniques;
- (iii) suggest panel of names to the Academic Council for appointment of examiners; and
- (iv) coordinate research, teaching, extension and other academic activities in the department/college.


PRINCIPAL
MCKV INSTITUTE OF ENGG.

2.4 Finance Committee

There shall be a Finance Committee, a Statutory Body.

2.4.1 Composition of Finance Committee:

- (i) The Principal (Chairman).
- (ii) One person to be nominated by the Governing Body of the college for a period of two years.
- (iii) Finance Officer of the affiliating University
- (iv) One senior-most teacher of the college to be nominated in rotation by the principal for two years.

2.4.2 Term

Term of the Finance Committee shall be three years.

2.4.3 Meetings

The Finance Committee shall meet at least twice a year

2.4.4 Functions of the Board of Studies

The Finance Committee shall act as an advisory body to the Governing Body, to consider:

- (i) Budget estimates relating to the grant received/receivable from UGC, and income from fees, etc. collected for the activities to undertake the scheme of autonomy; and
- (ii) Audited accounts for the above.

alshini

PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

NON-STATUTORY COMMITTEES

Eight Non-Statutory Committees have been formed for integration of all-round institutional development, nurturing the academic ambience, improving the overall Teaching-Learning process and as a whole to maintain discipline in the Institute. They are (i) Planning and Evaluation Committee, (ii) Grievance Redressal Committee (other than sexual harassment), (iii) Disciplinary Committee, (iv) Admission Committee, (v) Library Committee, (vi) Student Welfare Committee, (vii) Internal Complaints Committee (against sexual harassment), (viii) Academic Audit Committee. Other bodies will be constituted as and when required.

2.5 Planning and Evaluation Committee

Planning and Evaluation Committee shall be the principal planning body of the Institute and shall be responsible for monitoring of its development and preparing the Road Map. Recommendations of the Planning and Evaluation Committee shall be placed before the Governing Body for consideration and approval. Proposals relating to academic matters shall be processed through the Academic Council.

2.5.1 Composition

Sl. No.	Designation	Category
01	Chairman	Chairman, GB
02	Member	CEO, MCKV group
03	Member	Principal
04	Member	Registrar
05	Member	Dean (Research), Dean (Student Affairs)
06	Member	All HoDs
07	Member Secretary	Dean (Academic)

2.5.2 Meetings

Planning and Evaluation Committee shall meet at least twice a year.

2.5.3 Functions of Planning and Evaluation Committee

- To review the academic and other related activities of the Institute.
- To review the students and faculty development programmes.
- To visualize and formulate perspective plans for the development and growth of the Institute.
- To formulate Master Plan for campus development, facilitating implementation of the provision of the perspective plan.
- To draw new schemes of development for the Institute.
- To plan for resource mobilization through industry interaction, consultancy and extra-mural funding.
- To promote research and extension activities in the Institute campus.
- To promote teaching innovations and student placement programmes.
- To plan for sustaining the quality of education, quality improvement and accreditation of the Institute.

alshii
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

- (x) To recommend schemes to promote participation of academic departments in community development activities in the region.
- (xi) To consider such other activities for furtherance of academic excellence.

2.6 Grievance Redressal Committee (other than sexual harassment)

All complaints arising out of employment including those relating to unfair treatment, wrongful application of the terms and conditions of the service, harassment (other than sexual) and interpersonal co-ordination, shall be redressed through the Grievance Redressal Committee having the following composition:

2.6.1 Composition

Sl. No.	Designation	Category
01	Chairman	Principal
02	Member	Dean (Academic)
03	Member	All HODs
03	Member	Hostel Wardens/ Care Takers
05	Member Secretary	Registrar

2.6.2 Meetings

The Committee shall hold meeting periodically and take steps to redress grievances.

2.6.3 Functions of Grievance Redressal Committee

- (i) For redressal of grievances of the Institute and to hear and settle grievances as far as may be practicable within three months. The Committee shall report to the Governing Body for further action, if any.
- (ii) It shall be lawful for the Committee to entertain and consider grievances and complaints and report to the Governing Body to take such actions as it deems fit and the decision of the Governing Body on such report shall be final.
- (iii) The teaching/non-teaching staff of the Institute shall have to submit his/her complaint in a prescribed Form along with necessary documents in support of his/her complaint or grievance. The concerned staff shall have to apply individually and represent his/her case before the Grievance Redressal Committee. No proxy will be allowed to represent his/her case.
- (iv) The Committee shall give its recommendation within a period of 3 months.

2.7 Disciplinary Committee

The Disciplinary Committee ensures that students in Institute are law abiding, orderly and peaceful in the pursuit of educational objectives/goals in the community. The need for discipline in the Institute necessitates the setting up of Disciplinary Committee. The Principal has overall responsibility for maintaining discipline and good order in the Institute, but some disciplinary matters are delegated by the Principal to be dealt with by the Disciplinary Committee. Discipline is training that produces orderliness, obedience and self-control. Discipline refers to a systematic and methodic way of doing what ought to be

done at the proper time with full faith conscience and compulsion. Such wholehearted self-application to work incorporating discipline, duty and devotion is absolutely essential in all fields or activity. Discipline ensures not only good actions but living in harmony with others.

The Committee discourages student indiscipline and ensures that a leaser-free environment is maintained in the Institute.

2.7.1 Composition

Sl. No.	Designation	Category
01	Chairman	Principal
02	Member	All Deans
03	Member	One Senior Faculty-Coordinator from each department Nominated by the concerned HOD
04	Member Secretary	Registrar

2.7.2 Term

The term of the nominated members shall be three years.

2.7.3 Meetings

The Committee holds meeting at least two times in an academic year and also when the need arises.

2.7.4 Functions

- To serve as model in terms of character training and behavior for students.
- To assist the students in conforming to Institute rules and regulations.
- To help students develop self-discipline/internal discipline.
- To formulate Institute Rules and Regulations for the students to obey.
- To promote and encourage good behaviours among teachers and students.
- To collect the facts of all complaints as reported to.
- To determine, if a complaint for merit.
- To conduct all disciplinary hearings.
- To facilitate an amicable resolution to a complaint where possible.
- To administer punishment commensurate with offence committed by an student.
- To liaise with Institute and the law enforcement agents in case of difficult student.
- To make a decision on a complaint after the completion of disciplinary proceedings.
- To ensure peaceful co-existence among and between teachers and students respectively thereby creating a conducive Institute environment.

2.7.5 Discipline in general

Disciplinary action shall be taken against a student if he/she is found to be involved in any of the following acts.

- Misbehavior
- Gambling

alalini
PRINCIPAL

- (iii) Stealing
- (iv) Misconduct in the Institute premises or in place recognized as Institute property or site
- (v) Consumption of Drugs or of alcohol
- (vi) Processing fire-arms etc.
- (vii) Moral turpitude
- (viii) Use of Institute premises for any purposes other than for which it is meant without the permission of the concerned Authority.
- (ix) Breach of any standing rules of the Institute.
- (x) Any other causes/acts which may lower prestige of the Institute.
- (xi) Organizing meeting by students inside the campus or assisting outsiders to organize meeting inside the campus without permission of the appropriate Authority.
- (xii) Ragging in any form inside or outside the Institute campus.
- (xiii) Any other acts of indiscipline as considered by the appropriate Authority.

2.7.6 Discipline in classroom/department

- (i) The Head of the Department/ Centre and the teacher(s) shall report to the Principal of the Institute matters of breach of discipline which have come to his/her notice/knowledge and of the actions taken by him/her in this regard.
- (ii) Where a Warden or the Head of the Department/Centre is of the view that a punishment which is heavier than he/she is competent to impose is necessary, he/she shall report the case to the Principal of the Institute with his recommendations in writing and the Principal may take appropriate action as deemed necessary or place the matter before the Disciplinary Committee.

2.7.7 Discipline in Examination

The students must follow strictly the discipline in examination as described in Section 5.12 & 5.14.

2.7.8 Punishment

Student must follow strictly the discipline as described above. Violation of any clause by any student will be subjected to the following punishment:

Sl. No	Acts	Punishment
i	Misbehavior with employees of the Institute.	Stern warning and a fine of Rs.2500/- .
ii	Gambling inside the Campus	Stern warning for at least one semester and fine of Rs.2500/-
iii	Misbehavior or misconduct inside the Institute	Stern warning and fine of Rs.2500/- or more.
iv	Stealing any items from the campus	Conduct probation and rustication for at least one semester and a fine of Rs.2500/-

v	Drinking of alcoholic liquor, intoxication and drug addiction	Conduct probation and rustication from Hostels and Institute for at least two consecutive semesters and a fine of Rs.10, 000/-.
vi	Breach of any standing rules of the Institute	Stern warning, conduct probation/fine of Rs.2500/- or more. Depending on the nature of indiscipline, the fine may be enhanced (more than Rs.5000/-).
vii	Use of Institute premises for any purpose, other than for which it is meant without the permission of the concerned Authority.	Stern warning with conduct probation for two semesters/fine or more than Rs.5000/-
viii	Organising meeting by students or assisting outsiders to organize meeting inside the campus without the permission of the appropriate Authority	Conduct probation for a period of two consecutive semesters with a stern warning/fine of Rs.5000/-or more.
ix	Student not obeying the instructions given by the Disciplinary Committee	Rustication from the Institute and Hostel for two semesters and fine of Rs. 10,000/-.
x	Any fight inside the Campus among students	Stern warning with conduct probation for two semesters/fine or more than Rs.10000/-
xi	Disruption of normal Institute activities, including closing of Institute main gate, disturbing the examination activities.	Stern warning with conduct probation for two semesters/fine or more than Rs.50000/-
xii	Any other act of indiscipline as considered by the appropriate Authority	The matter may be placed before the Principal for appropriate action.

Note:

- Any student against whom a charge of misconduct has been made may be suspended from the roll of the Institute by the Principal, pending enquiry or pending trial on a cognizable offence by a Court of Law.
- No penalty, provided in this section shall be imposed without giving the student a reasonable opportunity of being heard.

2.7.9 Appeal

An appeal against the order of punishment by the Disciplinary Committee shall lie to the Chairman of the Governing Body.

2.8 Admission Committee

The Admissions Committee is responsible for conduct of the student admissions process in the UG and PG programs as per guidelines of the approval authorities.

2.8.1 Composition

Sl. No.	Designation	Category
01	Chairman	Principal
02	Member	All Deans
03	Member	One Faculty from each department Nominated by the concerned HOD
04	Member Secretary	Registrar

2.8.2 Term

The term of the nominated members shall be one year.

2.8.3 Meetings

The Admission Committee may meet at any time as necessary.

2.8.4 Functions of Admission Committee

- To formulate the general policy of admission in consistent with the admission rules of the Government.
- To prepare and publish the admission brochures, leaflet and admission form.
- To update the Institute website as per admission requirement and help the digital marketing team.

2.9 Library Committee

Library Committee is a body consisting of certain personnels who will supervise and advise the Librarian in library matter. It has been recognized as the essential agency which is needed for the governance of the Library since the Committee can devote more time to think of proper development of library service in a better way. The main function is to select and acquire sufficient reading materials for its readers. Keeping the users requirements, the Library Committee should advise for collection of good and worthwhile documents.

2.9.1 Composition

Sl. No.	Designation	Category
01	Chairman	Nominated by the Principal
02	Member	All Deans
03	Member	One Faculty Nominated by HOD of all departments
04	Member	Two Library Staff Nominated by the Principal
05	Member Secretary	Librarian

2.9.2 Term

The term of the nominated members shall be three years.

2.9.3 Meetings

The Library Committee shall meet at least twice a year.

abhinav
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

2.9.4 Functions of Library Committee

- (i) To guide the Librarian in formulating general library policies and regulations which govern the functions of the Library.
- (ii) To work towards modernization and improvement of the Library and documentation Services.
- (iii) To formulate policies and procedures for efficient use of Library resources.
- (iv) To adopt measures to enhance readership.
- (v) To prepare budget and proposals for the development of the Library.
- (vi) To recommend to the Authorities the fees and other charges for the use of the Library.
- (vii) To seek feedback on library functions from readers.
- (viii) To look after the proper management and use of the Library & all the departmental Library including services to be rendered to the readers.
- (ix) To look after the proper furnishing of the Library.
- (x) To allocate funds to different Departmental Libraries.
- (xi) To submit the annual report on the functioning of the Library.
- (xii) To scrutinize the indents for books received from various departments and other sources and approves them finally for orders.
- (xiii) To add, amend or delete any rules prescribed for the use of the library services by the readers.

2.10 Student Welfare Committee

The objective of Student Welfare Committee shall be to set out clearly the standard of services and policies of the Institute regarding the overall development of the students.

2.10.1 Composition

Sl.No.	Designation	Category
01	Chairman	Principal
02	Member	Dean (Academic)
03	Member	Registrar
04	Member	One Senior Faculty from each department Nominated by the Principal
05	Member	All Hostel Wardens/ Care Takers
06	Member	Six Students from 2 nd , 3 rd & 4 th Year including atleast Two Female Students
07	Member Secretary	Dean (Student Affairs)

2.10.2 Term

The term of the nominated members shall be three years.

2.10.3 Meetings

The Student Welfare Committee shall meet at least twice a year.

2.10.4 Functions of Student Welfare Committee

alabie
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

The Committee shall be competent to:

- (i) Formulate and make recommendations on matters of policy concerning all aspects of student welfare
- (ii) Implement the policy of the Institute in respect of welfare of students
- (iii) Make recommendations to the Governing Body on all matters relating to discipline amongst students
- (iv) Provide for the promotion of health and welfare of students and to exercise such supervision and control as will secure their well being
- (v) Advise the Governing Body on all matters relating to financial assistance to students
- (vi) Frame and amend rules for Hostels exercise supervision of all activities of the Students' Council
- (vii) Provide guidance to students regarding avenues of higher education and opportunities for employment
- (viii) Advise on such other matter as may be referred to it by any competent authority of the Institute.

2.11 Internal Complaints Committee (against sexual harassment)

The Institute is committed of creating and maintaining a community in which faculty members, non-teaching staff and students can work together in an environment free of violence, harassment, exploitation, intimidation and stress. This includes all forms of gender violence, sexual harassment and discrimination on the basis of sex/gender or amongst the same sex members. Every member of the Institute must be aware that while the Institute is committed to the right to freedom of expression and association, it strongly supports gender equality and opposes any form of gender discrimination and violence.

Keeping the "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" in view, the Institute has constituted a Committee against sexual harassment headed by a woman.

2.11.1 Composition

Sl. No.	Designation	Category
01	Chairperson	Senior Faculty (Female)
02	Member	Four Senior Faculty (at least one female) nominated by the Principal
03	Member	A lady representing administration
04	Member	A lady NGO representative

2.11.2 Power and Functions

A policy against sexual harassment, as defined under The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

2.12 Academic Audit Committee

To act as an independent committee in order to audit all Institute mechanisms and processes that contributes to the quality of the student learning experience and the standard of awards.

2.12.1 Composition

Sl. No.	Designation	Category
01	Chairman	Principal
02	Member	All Deans
03	Member	Registrar
04	Member Secretary	Coordinator, IQAC

2.12.2 Meetings

The Academic Audit Committee shall meet at least twice a year.

2.12.3 Functions of Academic Audit Committee

- To formulate the general policy of Academic Audit.
- To draw up and undertake an annual schedule of audit activity
- To recommend to Chairman, Governing Body the names of suitable persons for appointment of External Auditor.
- On the basis of these audit reports, to make recommendations to Planning and Evaluation Committee and to other committees as appropriate.
- To report annually to Governing Body and more frequently if major areas of concern are identified.

NOTE:

- $\frac{1}{2}$ members including the Chairman of the meeting shall constitute a quorum for any meeting.
- Any resolution except such as may be placed before the meetings, maybe adopted by circulation among all its members and any resolution so circulated and adopted by a majority of $\frac{3}{5}$ th of the members who have approved such resolution shall be as valid and effectual as if such resolution had been passed in a meeting duly convened and held.
- The Chairman of any committee may co-opt other additional members, if required.

alohii
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

CHAPTER-III: Officers of The Institute and Their Powers and Functions

3.1 Introduction

In MCKV Institute of Engineering Principal is the overall Academic Head of the Institute and is assisted by the Registrar, Deans, various Officers and the Heads of the Departments. Work distribution and functional responsibility along with authority of various positions are detailed here.

3.2 Powers and Functions of the Principal

The Principal as a Head of the Institute shall be the Chief Academic and Executive Officer of the Institute and shall exercise general supervision and control over the affairs of the Institute and implement the decisions/resolutions of all the Authorities of the Institute.

The Principal shall have the following powers and functions:

- (i) Subject to specific and general directions of the Governing Body, the Principal shall exercise all the powers of the Governing Body for management and administration of the Institute.
- (ii) The Principal shall have the power to delegate and re-delegate some of his powers to any of his subordinate Officers with the concurrence and approval of the Governing Body.
- (iii) To exercise power and functions of any other Officer during his absence.
- (iv) The final Authority responsible for maintenance of discipline among the students of the Institute shall be the Principal. His decision in that behalf shall be carried out by the Registrar, Heads of Departments and the Hostels Wardens/ Caretakers.
- (v) Notwithstanding anything contained in this clause, the punishment of debaring a student from an examination or rustication from the Institute or a Hostel shall, on the report of the Principal.
- (vi) Provided that no such punishment shall be imposed without giving the student concerned a reasonable opportunity to show cause against the action proposed to be taken against him.
- (vii) In case of exigency, he will allocate work or duties of any employee to any other employee as may be deemed necessary and place the matter before the Governing Body for approval.
- (viii) He shall exercise general control and supervision over other Officers and Staff of the Institute.
- (ix) He shall constitute advisory committees/bodies as may be considered necessary for convenience of administration.
- (x) He shall have the power to convene meetings of various committees/bodies of the Institute.
- (xi) He shall approve the rules relating to the management of students Hostels.



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

- (xii) He shall issue appointment letters for the post of teaching and non-teaching posts as per rules approved by the Governing Body of the Institute.
- (xiii) He shall declare vacation, recess and holidays and detain any teaching and non-teaching Staff during vacation, recess or holidays for official purpose.
- (xiv) He shall be responsible for administration of funds, all receipts and disbursements; settlement of all bills and maintenance of stock register and keeping the same up-to-date.
- (xv) He shall prepare in consultation with the Finance Officer the revised budget estimate for the current financial year and the budget proposal for the next financial year and submit the same to the Governing Body for approval.
- (xvi) He shall prepare in consultation with the Finance Officer the Annual Statement of Accounts for the previous financial year and submit the same to the Governing Body for approval.
- (xvii) He shall allocate funds to different Departments/Sections of the Institute.
- (xviii) He shall advise on any financial matters that may be referred to him for opinion by any Authority/Body/Committee of the Institute.
- (xix) He shall consider all matters having financial implications and requiring approval of the Governing Body.
- (xx) The Principal shall represent the Institute in suits or proceedings by or against the Institute, sign powers of attorney and verify the pleadings or depute representatives for the purpose.
- (xxi) If, in the opinion of the Principal, any emergency has arisen and such emergency requires that immediate action should be taken, he shall take such action as he deems necessary; and shall report the same for confirmation to the next meeting of the Authority.
- (xxii) Provided that if the Authority concerned as mentioned in this clause is of the opinion that such action ought not to have taken, it may refer the matter to the Chairman of the Governing Body whose decision thereon shall be final and binding.
- (xxiii) Provided further that if any person in the service of the Institute is aggrieved by the action taken by the Principal under the said clause, he shall have the right to appeal against such action to the Chairman of the Governing Body within 30 days on which such action is communicated to him and there upon the Chairman may confirm, modify or reverse the action taken by the Principal.

3.2 Powers and Functions of the Dean (Academic)

He will advise the Principal in the following:

- (i) Admission and enrolment of students;
- (ii) Finalization of academic calendar, time-table, registration of students for examinations, class room arrangements and all other requirements for proper conduct of class work;
- (iii) Checking and finalization of Lesson Plan and Course Coverage Reports.

alalini

PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

- (iv) Supervision of the maintenance of up-to-date academic records of all categories of students;
- (v) Publication and distribution of the syllabi;
- (vi) Organizing meeting of all the Institute level academic bodies;
- (vii) Arranging the issue of all academic certificates, medals and prizes to the students;
- (viii) To co-ordinate for the conduct of Convocation.
- (ix) To suggest the Principal to take suitable steps from time to time to strive for the high academic standards.
- (x) Assisting and providing necessary liaison with the affiliating University and other academic organizations.
- (xi) Formulating proposal for new courses and in organizing meetings of faculty members and external experts for this purpose in this regard.
- (xii) Perform any other duties as may be entrusted by the Principal.

3.3 Powers and Functions of the Dean (Research)

Dean (Research) will advise the Principal in the matter related to:

- (i) Formulate policies for the conduct of research and steps to maintain suitable standard.
- (ii) Frame rules for industrial sponsored research and consultancy.
- (iii) Create and maintain database regarding faculty research expertise.
- (iv) Facilitate faculty in procuring equipment necessary to conduct research/consultancy work, recruitment of project staff.
- (v) Device and implement a mechanism to organize national / international level conference, seminar, workshop etc.
- (vi) Coordinate co-curricular activities (Technical festivals, Quizzes etc.) for the students.
- (vii) Provide guidance for submitting proposals to funding agencies such as Department of Science and Technology (DST), Bhabha Atomic Research Centre (BARC), Board of Research in Nuclear Sciences (BRNS), Indian Space Research Organization (ISRO), Defence Research and Development Organization (DRDO), Aeronautics Research and Development Board (AR&DB), Ministry of Information Technology, etc.
- (viii) Perform any other duties as may be entrusted by the Principal.

3.4 Powers and Functions of the Dean (Student Affairs)

- (i) He will be responsible for the publication of students' Magazines, News Bulletins, Newsletter etc.
- (ii) He will advise the Principal in matters related to students' discipline and welfare.
- (iii) He will co-ordinate the student chapters and clubs, NCC, NSS, Sports, Cultural, Co-curricular and Extra-curricular activities of the students.
- (iv) He will correspond with Parents/Guardians of Students about their progress and individual problems/Welfare.
- (v) He shall discharge such other functions as may be assigned to him by the Principal from time to time.


PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

3.5 Powers and Functions of the Registrar

The Registrar shall be the Chief Administrative Officer of the Institute. He shall be full-time salaried Officer and shall work directly under the superintendence, direction and control of the Principal.

The Registrar shall -

- (i) be the custodian of the records, common seal, personal files, service books of all the employees and such other property of the Institute as the Principal and/or Governing Body of the Institute may commit to his charge.
- (ii) supervise and control the attendance, leave, work culture, duties and responsibilities and administrative control of non-teaching staff i.e. Accounts Section, General Section, Laboratories, Workshops, securities, Maintenance, Sweeping, Cleaning, Gardening, Care taking and Establishment Section.
- (iii) look after general establishment/administration of all staff/employees excluding the attendance of the faculty members for whom the Principal is the administrative Authority.
- (iv) receive complaints and suggestions in regard to the improvement of administration and consider them for appropriate action.
- (v) be responsible for admission of students, and their registration, for the maintenance of records of each student including his academic accomplishments, conduct etc.
- (vi) keep the minutes of all meetings of the Governing Body, Board of Studies, the Academic council, the Finance Committee, and other non-statutory Committees formed by the competent Authority of the Institute.
- (vii) initiate all kinds of Note-sheets to the Managing Trustee/Principal of the Institute for their approval and necessary action.
- (viii) look after the administration of the Hostels and duties & responsibilities of the Hostel Superintendent/Warden.
- (ix) look after the student activities and Hostel related grievances, if any, of the students in consultation with the Principal.
- (x) make arrangements for the examinations conducted by the Institute.
- (xi) conduct official correspondence with the affiliating University, Directorate of Technical Education, AICTE/UGC, Higher Education Department or any other Institute or Institution of University status or an autonomous Organization under the Societies Registration Act of 1860 under the direction and guidance of the Principal, if the situation is called for.
- (xii) maintain of Leave Register and Leave Records of both teaching and non-teaching employees of the Institute.
- (xiii) put up notes on Leave entitlement and Leave Rules, if asked for by the Principal.
- (xiv) be responsible for general discipline of the Institute.
- (xv) supervise and ensure that the Administrative Office maintain proper books of Accounts reflecting the true and genuine entries.

- (xvi) ensure that in all purchases and financial transactions fairness is being maintained.
- (xvii) look after recruitment of teaching and non-teaching staff and maintain their service records.
- (xviii) prepare the documents for submission to Statutory Bodies before AICTE/UGC, Director of Technical Education, Govt. of West Bengal, the affiliating University etc.
- (xix) be responsible to safeguard and maintain the buildings, gardens, staff and student canteens, cars and other vehicles, workshops, laboratories, libraries, reading rooms, equipment and other properties of the Institute;
- (xx) exercise such powers and perform such duties as may be assigned to him, from time to time, by the Principal and/or the Governing Body of the Institute. The competent Authorities of the Institute and the Principal may require his service at any time beyond the normal working hours including at night for matters requiring urgent attention.
- (xxi) When the Registrar is on Leave, it shall be open to the Principal of the Institute to authorize any Officer in the services of the Institute to exercise such powers and perform such functions and duties of the Registrar, as the Principal deems fit and necessary.

3.6 Powers and Functions of the Heads of the Departments

Subject to general supervision and control of the Principal, the Head of the Departments of the Institute shall have the following powers and functions:

- (i) He shall organize the teaching and research in the courses in the department.
- (ii) He shall allot teaching work, i.e. subjects, classes, time-table in consultation with the Departmental Academic Committee.
- (iii) He shall preside over departmental meetings to discuss and review progress in classes, attendance of students, progress of research activities, students' projects, industrial visits, class tests conducted by the faculty.
- (iv) He shall allot class-room accommodation and make all other necessary arrangements.
- (v) He shall supervise teaching and non-teaching employees of the Department, ensuring that all the members of the staff are discharging their duties properly and efficiently.
- (vi) He shall maintain overall discipline among the staff and the students in the Department.
- (vii) He will forward applications for sanction of all kinds of leave of the members of teaching and non-teaching staff of the Department and recommend suitable alternative arrangement, if necessary.
- (viii) He will ensure that the academic progress of the students of the Departments is maintained. He will monitor students' attendance in classes and laboratory and their performance in semesters.

- (ix) He shall take all such positive corrective measures to improve upon the functioning of the department.
- (x) He shall hold departmental conferences and seminars concerned with the department with prior permission of the Principal.
- (xi) He shall forward applications for leave for participation in Symposia / Seminar / Workshop by the staff of the department and encourage them to undertake research and consultancy activities by the faculty.
- (xii) Preparation of departmental proposal towards application for NBA/NAAC or for any such other accreditation bodies/approval authorities, like, AICTE/University /Higher Education Department, etc.
- (i) He shall be responsible for the preparation of annual accounts and the budget of the Department and/or their presentation to Finance Committee.
- (ii) He shall place requisitions for purchase of books for the departmental library on the recommendations of the departmental committee.
- (iii) He shall maintain the Stock Registers of all furniture, equipments, apparatus, books and periodicals and arrange for their annual checking.
- (iv) He shall maintain the accounts of Receipts and Expenditure of the department.
- (v) He shall recommend to the Principal for the purchase of required equipment and other items.
- (vi) He shall appoint on rotation of the Lab-in-Charge or other functionaries in the department.
- (vii) He shall be part of the Selection Committee for all position of the department.
- (viii) He shall perform any other duties as may be entrusted by the Principal.

3.6 Powers and Functions of the Controller of Examinations

The Controller of Examinations shall be the Principal Officer-in-Charge of the conduct of the examinations and tests of the Institute and declaration of their results. He shall discharge his functions under the superintendence, direction and guidance of the Examination Committee. He shall be a full-time salaried Officer of the Institute and shall work directly under the directions and control of the Principal.

It shall be his responsibility:

- (i) to prepare and announce in advance the calendar of examination;
- (ii) to arrange for printing of question papers;
- (iii) to arrange to get performance of the candidates at the examinations properly assessed and process the results;
- (iv) to arrange for the timely publication of results of examinations and other tests.
- (v) to postponed or cancel examinations, in part or in whole, in the event of malpractices or if the circumstances so warrant, and take disciplinary action or initiate any civil or criminal proceedings against any person or a group of persons alleged to have committed malpractices;

- (vi) to take disciplinary action where necessary against the candidates, paper setters, examiners, moderators or any other person connected with examinations and found guilty of malpractices in relation to the examinations;
- (vii) to review from time to time the results of the Institute examinations and forward reports thereon to the Academic Council;
- (viii) He shall fix duties of the staff working under him, exercise control over them and assess their works and performance;
- (ix) He shall be responsible for the safe custody of all Registers, papers, documents, certificates and other confidential files connected with the conduct of all Institute examinations.
- (x) He shall keep the Minutes of the meetings of the Examination Committee and all concerned Committees.
- (xi) He shall convene meetings and issue notices therefor to the members of the Malpractices Enquiry Committee, the Boards of Examiners, Question Paper Setters and Committees appointed by them and to conduct the official correspondence thereof.
- (xii) He shall with the prior approval of the Principal issue appointment orders to the Examiners and paper setters from the panel recommended by the respective Board of Studies.
- (xiii) He shall bring to the notice of the Principal any discrepancy or error that may be noticed in regard to any matter connected with the examinations and for the necessary rectification.
- (xiv) He shall care for tenders/quotations for printing Registers, forms, mark-sheets etc. for examination section and countersign the comparative statements in consultation with the Finance Officer and make recommendations to the Principal for accepting the tenders/quotations or otherwise.
- (xv) He shall sanction expenditure for purchase of necessary items and printing forms, mark-sheets etc. on the basis of accepted quotations subject to the budget provision.
- (xvi) The Controller shall exercise such other powers and perform such other duties as may be prescribed or assigned to him, from time to time, by the Examination Committee and/or the Principal.

3.7 Powers and Functions of the Finance Officer

The Finance Officer shall be the Principal finance, accounts and audit Officer of the Institute. He shall be a full-time salaried Officer and shall work directly under the control of the Principal. He shall be the ex-officio Secretary of the Finance Committee.

- (i) The Finance Officer shall exercise general supervision over the funds of the Institute and shall maintain the accounts of the Institute and shall advise as regards its financial policy. Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding Rs.10,000/- without the previous approval of the Finance Committee.

- (ii) He shall ensure that the limits fixed by the Finance Committee for recurring and non-recurring expenditure for a year are not exceeded and that all allocations are expended for the purposes for which they are granted or allotted.
- (iii) He shall be responsible for the preparation of annual accounts and the budget of the Institute and/or their presentation to the Governing Body.
- (iv) He shall keep a constant watch on the state of the cash and bank balance and on the state of investments.
- (v) He shall keep watch on the progress of collection of revenue and advise the principal on the methods to be employed for collection.
- (vi) He shall ensure that the Registers of buildings, land, furniture and equipments are maintained up-to-date and that stock taking of equipments and other consumable materials in all departments' offices, workshops, laboratories, libraries and stores of the Institute is conducted regularly.
- (vii) He shall call for explanation for unauthorized expenditure and for other financial irregularities and suggest disciplinary action against any academic or non-academic member at fault.
- (viii) He shall call for from any office, department, workshop, laboratories, libraries, stores of the Institute for any information and returns that he thinks necessary for the proper discharge of his financial responsibilities.
- (ix) The Receipt of the Finance Officer or the person(s) duly authorized in his behalf by the Board of the Governors for any money payable to the Institute shall be sufficient discharge for payment of such money.
- (x) He shall pass bills and sign cheques for payments to be made out of the Institute funds.
- (xi) He shall develop and operate an internal audit system so that the records relating to the receipts and expenditure of money and receipts and issues of articles are properly maintained for easy audit and verification.
- (xii) He shall prescribe financial forms to be used in the Institute.
- (xiii) He shall attend the meeting of the Finance Committee and keep minutes of the proceedings.
- (xiv) He shall make arrangements for the audit of the accounts of the Institute.
- (xv) He shall place the Audit Report within one month from the date of its receipt together with a statement of action taken or proposed to be taken and an explanation in regard thereto before the Finance Committee and with its observations before the Governing Body within one month from the date of the meeting of the Finance Committee.
- (xvi) He shall place the Monthly Reconciliation statement before the Principal regularly and quarterly Reconciliation statement before the Finance Committee together with explanation for the delay, if any.
- (xvii) He shall exercise such other powers, perform such other duties and discharge such other financial functions as are assigned to him by the Principal.

alalini

- (xviii) When the Office of the Finance Officer is vacant or when the Finance Officer is absent by reason of illness or any other reason, the duties and functions of the Finance Officer shall be performed by such other persons as the Principal may appoint for the purpose.

3.8 Powers and Functions of the Librarian

- (i) Responsible for day to day library administration / overall development of the Central Library.
- (ii) Look after for requisition & Cataloguing of books, journals & publications / issue and return of books/journals/magazine and subscription of journal.
- (iii) To suggest proposals for inclusion in the annual budget.
- (iv) Responsible for selection of books for purchase / Procurement of Journal/ E-journal/magazine / Newspaper etc. as advised by Library Committee.
- (v) Responsible for staff development programme for the employees of the library including assessment / evaluation.
- (vi) Responsible for arrangement of routine for shift duties in the library.
- (vii) Responsible for document preparation for AICTE/University/UGC/NBA/NAAC etc.
- (viii) Maintenance of Digital library/Book Bank scheme / proper book arrangement /stock verification, etc.
- (ix) Look after for Library attendance / book transaction record /storing of University /Institute question papers.
- (x) Look after for Library membership card / record of lost or replacement books/ long overdue books etc.


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

CHAPTER-IV: Service Rules and Leave Rules

4.1 Introduction

The Rules, Regulations, which are issued in this document, are of direct concern of this Institute, are held and used by the staff members posted in the various departments of this Institute handling the relevant subjects as per the documents of Work Allocation for discharge of their respective functions and duties.

4.2 Interpretation

Any matter regarding conditions of service not covered by the provisions of regulations of the Institute may be decided in accordance with the rules/ regulations/statutes laid down by the AICTE, UGC and/or Government of West Bengal.

The Principal of the Institute shall have the power to interpret any regulation and such administrative instructions as may be necessary to give effect to them.

4.3 Definitions

In these Regulations, unless the context requires otherwise, the following words and phrases have meanings hereby assigned to them:

- (i) 'Faculty' means a full-time or part-time Teacher {Professor/Associate Professor/ Assistant Professor/ Lecturer (Selection Grade)} including the Principal of MCKV Institute of Engineering and includes a Teacher working in a vacancy against a permanent teaching post of the Institute.
- (ii) 'Academic Staff' means Faculty members and such Technical Support Staff members (Laboratory Instructor) of the Institute as are directly/indirectly involved in academic activity of the Institute.
- (iii) 'Non-teaching Staff' mean all such Staff members as are not directly involved in the Academic Activities and include the following:
 - a. All Officers in different Departments/Sections appointed/designated as such by the Institute as Registrar, Controller of Examinations, Administrative Officer, Finance Officer, Purchase Officer, Training & Placement Officer, Training & Placement Co-ordinators, HR Officer, Librarian, Assistant Librarian, such other Library Staff Members if designated differently by the Institute, Maintenance Engineers/Technicians of all specified disciplines and branches, Personal Secretary, Personal Assistants, Administrative Staff, Accountant, Caretakers, Cashier, Office Assistants, Receptionist-cum-Telephone Operator, and such other Staff members as may be appointed at the Institute.
 - b. Laboratory Attendant, Library Attendant, Office Attendant and such other Staff members as may be appointed at the Institute.
 - c. Peon and such other Staff members as may be appointed at the Institute.

alalini

- (iv) 'Completed year of service' or 'one year's continuous service' means continuous service of specified duration under MCKV Institute of Engineering and includes the period spent on duty as well as absence on leave including Extra-ordinary leave on medical ground or due to visit abroad granted by the Competent Authority of MCKV Institute of Engineering.
- (v) 'Qualified Service' means service excluding the period of leave without pay.
- (vi) 'Joining time' means the time allowed to an employee in which to join a new post or to travel to or from a station to which he is posted.
- (vii) 'Day' means a calendar day, beginning and ending at midnight, but an absence from headquarters which does not exceed 24 hours shall be reckoned for all purposes as one day, at whatever hours the absence begins or ends.
- (viii) 'Notice Board' means the Board maintained by MCKV Institute of Engineering for the purpose of displaying Notices/Circulars etc..
- (ix) 'Leave Salary' means the monthly amount paid by MCKV Institute of Engineering to an employee on leave.
- (x) 'Pay' means the amount drawn monthly by an employee of MCKV Institute of Engineering as-
 - a) the pay, other than special pay or pay granted in view of his personal qualification which has been sanctioned for a post held by him substantively or in an officiating capacity, or to which he is entitled by his position in a cadre, and
 - b) any other emoluments which may be specially classed as pay by the Governing Body of the Institute.
- (xi) 'Basic Pay' means Pay in the Pay Band plus Academic Grade Pay/Grade Pay.
- (xii) 'Special Pay' means an addition, of the nature of Pay, to the emoluments of a post or of an employee, granted in consideration of –
 - a) the specially arduous nature of the duties; or
 - b) a specific addition to the work or responsibility.
- (xiii) 'Permanent post' means a post carrying a definite sanctioned Scale of Pay without any limit or period of time.
- (xiv) 'Temporary post' means a post carrying a definite sanctioned Pay or monthly honorarium with a limit or period of time.
- (xv) 'Appointment on probation' means appointment on trial against a permanent post.
- (xvi) 'Permanent appointment' means appointment against a permanent post which has been confirmed after the probationary period.
- (xvii) 'Temporary appointment' means appointment in a temporary post or officiating appointment in or against a permanent post.
- (xviii) 'Officiate' means an employee officiates in a post when he performs the duties of a post on which another person holds a lien or when he is appointed by the Authority competent to make substantive appointment to the post to officiate in a vacant post on which no other persons holds lien.

- (xix) 'Service' includes the period spent by an employee on actual duty, on leave or on deputation provided that any period of leave without pay or of deputation shall not be treated as service unless specifically ordered by the Competent Authority for reasons to be recorded.
- (xx) 'Family' means employee's wife or husband, as the case may be, residing with the employee and legitimate children and step-children residing with and wholly dependent upon the employee. It includes, in addition, parents, sister and minor brother, if residing with and wholly dependent upon the employee.
- (xxi) 'Year' means:
 - a) Academic Year: a period of 12 months commencing from 1st of July to 30th June of the following Year.
 - b) Financial Year: A-12 month period commencing from 1st of April to 31st March of the following year.
 - c) Calendar Year: A-12 month period commencing from 1st of January to 31st December of the year.
- (xxii) Holiday & Off-day: Holiday means a day declared as such by the Institute Authority and includes the Sunday in each week. Similarly, Off-day means a day declared as such by the Institute Authority in each week

4.4 Classification of Employees

All employees of the Institute shall be classified as (a) Permanent, (b) Ad-hoc, (c) Probationer and (d) Employee on Contract.

- (a) **Permanent employee** is an employee whose name has been entered in the employees' Register of the Institute as permanent employee and who has been given a letter of confirmation after a prescribed period signed by the Competent Authority of the Institute.
- (b) **Ad-hoc employee** is an employee who has been engaged for a limited period of work, either in the Scale of Pay or with a consolidated salary, which is essentially of ad-hoc nature likely to be finalized within a limited period. The period of ad-hoc work may be extended from time to time, if necessary. The Competent Authority of the Institute may at any time terminate the service of an ad-hoc employee without assigning any reason.
- (c) **Probationer** means an employee who is provisionally employed with a view to being considered for confirmation as permanent employee.
- (d) **Employee on Contract** means an employee appointed with a specific term(s) and condition(s), and with specific time limit embodied in his Appointment Letter.


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

CONDITIONS OF SERVICE

4.5 Selection Committee and Appointment

4.5.1 General

- (i) Appointment of Principal, Registrar, Faculty members, Librarian, other Officers and Laboratory Instructors having minimum qualification as stipulated and prescribed by relevant Regulatory Bodies and the Governing Body of the Institute, as the case may be, shall be made by the Management of the Institute through the Selection Committees constituted by the Governing Body of the Institute in accordance with such terms & conditions as it may stipulate and which do not contravene the norms of AICTE/UGC/Government of West Bengal.
- (ii) Provided that whenever the Selection Committee recommends a panel of candidates for appointment to vacant posts, such panel shall remain valid for the purposes of appointment for a period of one year for Faculty members and Laboratory Instructors with effect from the date of recommendation by the Selection Committee unless extended by the Competent Authority.
- (iii) Appointment for other Staff, full-time or Ad-hoc, shall also be made by the Management of the Institute in accordance with such rules and regulations and on observance of such formalities as may be framed and stipulated by it.
- (iv) Whenever felt necessary in the academic interest of the Institute, the Principal in consultation with the Chairman may appoint Ad-hoc Faculty members, Laboratory Instructors, Workshop Assistants and other non-teaching Staff. Such appointments shall, however, be made for a maximum period of six months. No further extension shall be made unless the same has been sanctioned by the Chairman before the expiry of the temporary period of service.
- (v) Provided that the Governing Body shall approve all appointments to all the posts under the Institute.
- (vi) All posts in the Institute shall normally be filled by direct recruitment through advertisement but the BOG shall have the powers to decide that a particular post be filled by negotiation or by promotion from amongst the employees of the Institute.
- (vii) The Selection Committee for filling up of posts in the Institute by advertisement or by promotion from amongst the employees of the Institute shall be constituted in a manner as laid down by the BOG from time to time.
- (viii) The terms and conditions of the posts to be filled through advertisement and all applications received within the date specified in the advertisement shall be considered by the Selection Committee.
- (ix) Provided that the Principal may, for sufficient reasons, consider any application received after the date so specified. The preliminary selection of candidates to be called for interview shall be made by the Principal, either by himself or by a Screening Committee constituted by him and a summary of particulars of the

candidates called for interview shall be supplied to all members of the Selection Committee.

- (x) Action to be taken by the Principal in clause-4.5.1.(ix) shall be taken by the Chairman of the Governing Body when the post of the Principal is to be filled.
- (xi) After procuring the applications, these are scrutinized and examined and a shortlist of candidates is prepared in accordance with the eligibility criteria of AICTE/UGC. The shortlist candidates are called for interview and candidates are selected in order of merit by the Selection Committee which is subsequently got approved by the Governing Body.
- (xii) It shall be duty of the Screening Committee of the Institute to certify that all applications, who are called for interview fulfill completely the essential qualifications as advertised and no candidate, who does not fulfill the essential qualifications, is called for interview.
- (xiii) The Principal shall maintain a panel of external experts in various subjects as approved by the Governing Body to be revised every year. External experts shall be appointed from this panel. In the event of requirement of external experts, generally not being available out of the panel, the Principal after getting consent of the Chairman may appoint experts who may not appear in the panel of experts approved by the Board. The external experts shall act as experts for all the specializations in the Department concerned.

4.5.2 Appointing Authority

The formal letters of appointment shall be issued in the following manner:

- (i) In case of Principal, under the signature of the Chairman.
- (ii) In case of Registrar, Faculty Members, Officers, Librarian and Lab Instructors, under the joint signature of Principal and the Managing Trustee.
- (iii) In case of other non-teaching Staff, under the joint signature of the Principal and the Managing Trustee or under the joint signature of the Registrar and the Managing Trustee as may be decided/directed.

4.5.3 Number of Posts

The number of posts under each category of employees, teaching as well as non-teaching shall be determined by the Principal from time to time as per guidelines of AICTE/UGC and shall be recommended to the Governing Body for its approval.

4.5.4 Tenure of Appointment

Appointments against posts created made-

- (i) either for a specific period on contract basis, which shall be on such terms and conditions as may be agreed upon by the Governing Body and the person concerned and the same may, at the discretion of the Governing Body, be reviewed any number of times, each such renewal being for a period ranging between one to three years.

- (ii) On a permanent basis till the age of superannuation against a substantive post.

4.5.5. Age of Appointment

The age of a person at the time of appointment to the services of the Institute shall not for any post be less than 18 years.

NOTE: Any person who is offered an appointment for any post in the Institute shall be required to submit the following Certificates (attested photocopies) before he is allowed to join in that post:

- Certificates/Mark-sheets in support of his educational and professional qualification(s) and experience;
- Certificate/Document in support of his Date of Birth;
- Proof of Total Experience
- Release Letter
- Latest Salary Slip
- 3 copies color photograph
- 1 Copy of Pan Card, AADHAAR Card & Voter ID Card each.
- Medical Fit Certificate by a Registered Medical Practitioner. The Medical Certificate must certify that the person concerned does not suffer from any disease (communicable or otherwise), constitutional affection or bodily infirmity which may come in the way of his efficient discharge of duty.

4.5.6. Appointment of the Head of the Department

- The Head of the Department shall be appointed for a tenure of 2 years.
- The appointment shall ordinarily be made on the basis of seniority.
- The Principal may constitute a Committee for assessing the suitability of a candidate for appointment as Head or may straight away the appointment be made on seniority basis.
- In case of Department, where there is no Head of the Department, the Principal will act as Head of the Department. He may, however, delegate the power to any other Head of the Department till a regular Head is appointed.

In case, the Principal is not satisfied with performance of any Head of the Department, with the approval of the Chairman, he shall take over the Headship of that Department or assigns it to any other Professor.

4.5.7. Declaration

- Every applicant for a post in the Institute shall make a declaration of his age at the time of his entry into service based on his Matriculation/School Final, Higher Secondary, or any other Certificate approved by the Competent Authority concerned and in the case of non-Matriculate, such other documentary proof as may be acceptable to the Authority concerned upon which the age will be admitted. After the declaration of age and acceptance of the same by the Competent Authority it shall be

binding on him and no revision of such age shall be allowed to be made at a later date for any purpose whatsoever.

- (ii) Every employee shall be required to submit duly filled-up "Self Declaration of the Family by the Employee" form.

4.5.8. Condemnation of Overage

The Selection Committee may, in exceptional cases, where they are competent to make selection for the appointment and for reasons to be recorded in writing, recommend condemnation of an excess in age over the prescribed limit. On receipt of such recommendation, the Appointing Authorities may condone the excess in age.

4.5.9. Probation

- (i) Every person appointed in the Institute against substantive posts, other than the Principal and those appointed by invitation, unless, otherwise, provided for in the appointment order of the person concerned, shall be on probation for a period of one year. In computing the period of probation, Extra-ordinary leave, if any, granted to an employee on probation shall be omitted. The period of probation may be extended at the sole discretion of the Competent Authority.
- (ii) Well before the termination of the period of probation, the Principal shall call for the report of work and conduct from the immediate Superior of the employee. If at the end of the period of probation, the work and conduct of the employee continues to be unsatisfactory, a report to the Principal shall be made by the immediate Superior of the employee as Certifying Officer as to whether the services of the employee should be terminated or the period of probation extended.
- (iii) Any extension of the period of probation shall not be longer than one year and there shall be one such extension except as provided under clause-4.5.9.(v) below. The Principal/Registrar shall be Officer empowered to certify satisfactory completion of probationary period of an employee or receiving recommendations from the respective Head of the Department/Section-in charge.
- (iv) As soon as possible after completion of the prescribed period of probation, orders of declaration of probation shall be issued by the Principal based on the report of the Certifying Officer and approved by the Competent Authority. The Certifying Officers shall base their decisions on the evaluation reports and such other additional evidence as may be available to them.
- (v) If the work of an employee is found to be unsatisfactory even after the extended period of probation, the Appointing Authorities shall have the right to terminate the services of the employee on the recommendation of the Principal and discharge him from the services of the Institute provided, however, that in the event of the Chairman desiring to give one more chance to the employee recommended by the Principal for termination of his probation, the Governing Body for reasons recorded, cause the issue of a final warning with a special extension of probation for a period not exceeding six months. If after this extension, his performance is still not

satisfactory as reported by the Certifying Officer, the Appointing Authorities shall terminate his services. No appeal shall lie the order of discharge of a probationer.

- (vi) Any delay in the issue of an Office Order either extending the period of probation or discharging a probationer shall not entitle an employee to claim that he has satisfactorily completed such probation.
- (vii) All employees shall be eligible for the grant of annual increment in which they are appointed after satisfactory completion of one year service.
- (viii) Notwithstanding anything contained in the foregoing, if a probationer's work or conduct is found to be grossly unsatisfactory, a probationer can be terminated at any time during the period of probation by the Appointing Authorities with one month's notice or salary for the period.

4.5.10 Confirmation

An employee, on completion of the period of probation and subject to the satisfaction of the Competent Authority, will be confirmed with the approval of the Chairman of the Governing Body, provided no disciplinary proceeding and/or enquiry is either pending or contemplated against him.

There will be no automatic confirmation. It can only be done by a specific Office Order issued by the Competent Authority.

4.5.11 Commencement of Service

All appointments shall take effect from the date on which the Appointee reports himself for duty at the Institute or the place prescribed in his Order.

4.6 Service Book

A Personal File shall be maintained for every employee, full-time or Ad-hoc, in which all Certificates of educational qualification/experience (attested copies), records and other documents relating to his service in the Institute(s) shall be placed. The Personal File shall contain, in particular, a Service Book wherein the history of his service will be recorded from the date of his appointment including increment, promotion, reward, punishment and all other special events, if any, in his service career. The Service Book shall also contain the Leave Account for the employee showing complete record thereof. The Service Book shall be kept in the Administrative Office under the custody of the Registrar.

4.7 Performance Appraisal of Academic Staff

- (i) Academic Staff performance has been evaluated in two different ways –
 - a) Student Feedback Form,
 - b) Self appraisal Form
- (ii) MCKVIE adopts online Students Feedback System and it covers the important aspects of teaching strategy and other constructive suggestions by the students for further improvements. Student feedback system has three main objectives:-

- a) To provide students with the opportunity to comment on the quality of their learning experiences, as required in preparation for and as part of review processes.
 - b) To assess the success of academic provision in relation to the expectations of students.
 - c) To provide feedback to Faculties and Laboratory Instructor in order to improve delivery and/or content of the study-unit.
- (iii) There are two stages for evaluation per semester - Mid-Course (by 2-3 months) and Final (by end-of-course).
- (iv) Each Academic Staff has to submit a duly filled up self appraisal form at the month of June every year which includes use of teaching aids, development of course file, accessibility of faculty, summary of formative work done by him, syllabus covered, beyond syllabus efforts, types of tests given, man-days devoted to formative efforts, etc. This will give the faculty a clear perspective of what is expected from him for providing quality education.
- (v) Student feedback and self assessment is shared only with HOD (for purely facilitative purposes and towards improvements).
- (vi) These assessments are used only for faculty improvement not for promotion, giving incentives, etc.
- (vii) The HOD may appoint a suitable Counsellor (e.g. someone senior enough/ highly respectful with good teaching qualities) to help the faculty or arrange domain knowledge & pedagogy training.
- (viii) Improvement in teaching has to be monitored and results have to be shared with the faculty.

4.8 Permission to the Faculty members for writing Text Books

- (i) A Teacher who wishes to write a Book, Text Book or Manual must obtain permission from the Principal.
- (ii) No relief from or reduction in teaching and/or research activities shall be given to the Teacher.
- (iii) In the event of publication of a Book, Text Book or Manual by a Private Publisher, no liability shall accrue to the Institute. The Institute shall also not claim a share of the royalties as these are taxable along with other income for purpose of Income Tax.

4.9 Forwarding of Applications for Outside the Institute

- (i) No application shall be forwarded unless the Head of the Department certifies that he can make alternative arrangements till the post is filled-in on regular basis and the arrangement will be without any detriment to work.
- (ii) An employee who meets the requirements mentioned at clause 4.8.(i) can be allowed to submit two applications in the course of a Calendar Year.
- (iii) No employee who is under a bond to serve the Institute for a certain period shall be permitted to apply unless the bond period has expired.

- (iv) A Teacher who fulfils the requirements mentioned at clause 4.8.(i) and whose application is forwarded shall in the event of his selection, be relieved after completion of the semester.
- (v) Applications of the employees fulfilling the prescribed conditions will be forwarded by the Principal.

4.10 Transfer

An employee may be transferred from one Department/Section to another Department/Section in the interest of the Institute.

4.11. Pay

4.11.1 General

An employee, other than Ad-hoc and/or employee on contract, will be entitled to a consolidated Pay or a Scale of Pay specified for his post. Faculty members will draw the initial revised Basic Pay as laid down by AICTE/UGC and other Allowances as admissible to the Institute, and for Non-teaching Staff, the West Bengal Services (Revision of Pay and Allowance) Rules, 2009 will be applicable. However, higher initial Pay may be allowed by the Chairman in deserving case on the recommendation of the Principal.

4.11.2 Increment

- (i) Each annual increment shall be equivalent to 3% of the sum total of Pay in the relevant Pay Band and the Academic Grade Pay (AGP)/Grade Pay (GP) as applicable for the stage in the Pay Band.
- (ii) Each advance increment shall also be at the rate of 3% of the sum total of pay in the relevant Pay Band and AGP/GP as applicable and shall be non-compoundable.

4.11.3 Grade of Pay and Career Advancement Scheme

As laid down by AICTE/UGC and applicable from time to time as decided by the Competent Authorities.

4.11.4 Incentives for Ph.D. and other Higher Qualification

These will be decided by the Competent Authorities of the Institute from time to time in commensurate with the guidelines framed by the AICTE/UGC.

4.11.5 Medical Allowance

Medical Allowance admissible to an employee shall be of Rs.300/- per month.

4.11.6 House Rent Allowance

As laid down by AICTE/UGC.


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

4.11.7 Payment of Honorarium

Honorarium as decided by the Competent Authority is permissible, when an employee holds charges of another post involving higher responsibility in addition to his own substantive post.

4.12 Retirement

4.12.1 Age of Superannuation

No Non-teaching Staff of the Institute shall be entitled to be in the service of the Institute after he reaches the age of 60 years. Provided that in respect of Officers, the Governing Body may, on the recommendation of the Principal, appoint persons of exceptional standing on contractual basis, after their retirement, for a maximum period of five years.

In order to meet the situation arising out of shortage of Faculty members in Technical Institutions and the consequent vacant position therein, the age of superannuation for faculty members in Technical Institutions has been enhanced to 65 years, vide the Department of Higher Education letter No.F.No.I-19/2006-U.II dated 23.3.2007, for those involved in class room teaching in order to attract eligible person to the teaching career and to retain Faculty members in service for a longer period.

Subject to availability of vacant positions and fitness, Faculty members shall also be re-employed on contract appointment beyond the age of 65 years upto the age of 70 years.

Retirement is effective from the afternoon of the last day of the month in which age of superannuation is attained. If an employee whose Date of Birth is the first of the month, he shall retire on the afternoon of the last day of the preceding month. The day of retirement on superannuation will be deemed as a working day.

4.12.2 Medical Ground

An employee may be allowed to retire earlier than the date of his superannuation being declared him by the Medical Board constituted by the Governing Body in this regard, as completely and permanently incapacitate for service.

4.12.3 Resignation

No employee shall unless the Chairman, Governing Body otherwise directs, be permitted to resign if he fails to serve his Appointing Authorities due notice at least for:

- (i) One month in case of an employee under probationary period or a Ad-hoc post or,
- (ii) One month in the case of a permanent employee. However, for Academic Staff, resignation will not be accepted before completion of a semester in all respects. Provided that in special circumstances the Chairman, Governing Body on the recommendation of the Principal may accept a notice of intention to resign for a shorter period.

An employee who tenders resignation and quits without giving the notice, shall be at the discretion of the Competent Authority, be liable to forfeiture of his salary for the period by which the notice falls short of the requirements of clause 4.12.3.(i) or (ii) as the case may be, of the aforesaid clause in addition to such disciplinary action as may be taken against him for contravention of the provision under the clause.

NOTE:

Every employee leaving the services of the Institute for whatever reason it may be shall before his leaving return all properties belonging to the Institute issued or lent to him in connection with his employment. The cost of such property, if not returned, shall be deducted from his Pay or the amount due to him or recovered otherwise.

Resignation once submitted cannot be withdrawn, unless specially allowed by the Chairman, Governing Body. It will be effective from the date of his resignation.

4.13 Re-Employment

- (i) The category of superannuated Faculty members eligible for re-employment.
- (ii) The Institute shall follow the following principles, while taking up the cases of superannuated Faculty members for re-employment:
 - a) There shall be vacancies of Faculty members at the Institute, remaining unfilled for at least one year.
 - b) The number of Faculty members to be re-employed in the Institute at any given time shall be limited to 50% of the vacancies identified as above.
 - c) Re-employment of superannuated faculty members may be made only against regular sanctioned posts, which could not be filled up.
 - d) There shall be adequate work load for the re-employed Teacher at the Institute, to justify appointment.
 - e) Superannuated Faculty members shall be medically fit to undertake new appointment.
 - f) The service record of superannuated Faculty members shall be highly satisfactory and they be both morally and ethically sound.
- (iii) The performance of a re-employed Teacher shall be reviewed periodically by the Institute. If the performance is found unsatisfactory, his services may be terminated by the Appointing Authorities by giving one month's notice.
- (iv) Re-employment shall not be given as a matter of right.


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

CODE OF CONDUCT

The Code of Conduct is designed to ensure that the Institute operates efficiently and effectively and that the employees are treated fairly and equitably. It is an effort to explain the Institute's position clearly so that disciplinary action does not come as a surprise to the employees. The employees are expected to act honestly, conscientiously, reasonably and in good faith at all times having regard to their responsibilities, the interests of the Institute and the welfare of colleagues and students.

4.14 General Duties and Obligations of the Employees

4.14.1 Academic Staff

DUTIES

- (i) All Academic Staff shall discharge their duties above all personal, political and other consideration and shall at all times maintain absolute integrity and devotion to duty and shall conduct themselves in a manner which will enhance the reputation of the Institute.
- (ii) They shall abide by and comply with all the rules and regulations, standard practices/norms of the Institute and all Orders and Directions of their Superior Authorities.
- (iii) They shall at all times be courteous in his dealings with other members of the Staff, students and members of the public.
- (iv) They shall, notwithstanding with their personal views on any matter relating to policy and programme of the Institute, carry out faithfully the duties and responsibilities entrusted to them.
- (v) They shall practice, promote and encourage collective functioning for the betterment of the Institute and apply their personal endeavor and initiative for the development of harmonious and peaceful interpersonal relationship among the employees within or outside the Institute premises.
- (vi) They shall initiate corrective steps, where necessary, to improve work performance in their respective fields.
- (vii) They shall control the students with good behaviour and maintain punctuality in attendance.
- (viii) They shall prepare themselves with lessons to be taught well in advance to fulfill the queries of the students.
- (ix) They shall be required to make a target for completion of specific Syllabus as per Academic Calendar.
- (x) In their way of living and outlook, they shall set an example to their colleagues and students.
- (xi) They shall at all time conduct themselves in accordance with the Orders regulating behavior and conduct which may be in force in the Institute.

- (xii) They shall not discriminate against any student on grounds of caste, creed, sect/religion, sex or languages or any of them. They shall also discourage such tendencies among their colleagues and students.
- (xiii) They shall be required to observe the scheduled hours of work, during which they must be present at the place of their duty. Except for valid reasons and/or unforeseen contingencies, no employee shall be absent from duty without prior permission.
- (xiv) Without prejudice to the foregoing provision, Academic Staff shall perform the following duties:
 - a) Invigilation or supervision work relating to any Examinations for any course of study taught in the Institute;
 - b) Drawing of class routines;
 - c) Carrying out of assignment of such field work as may be necessary for the courses taught in the Institute;
 - d) Assisting the Principal and the Registrar with regard to admission of students;
 - e) Advising or counseling students;
 - f) Evaluation of student performance;
 - g) Participate in sports, games and other co-curricular activities for the wellbeing of the students;
 - h) Participate in R&D activity of the Institute ;
 - i) Take up such consultancy works as may benefit the Institute;
 - j) Participate in Industry-Institute collaborative works;
 - k) Make internal assessment of the students;
 - l) Awarding marks to the students in theoretical, practical, internal etc., without any special biasness.
- (xv) They are responsible for participating in the life of the Institute in its governance and administration. They shall endeavor to promote the interest of the Institute and act in a manner which shall be conducive to academic environment for reaching Excellency in the field of Engineering and Technology and give full co-operation in all academic programmes and other activities conducive to the welfare of the student community.

OBLIGATIONS

- (i) No Academic Staff shall commit any misconduct or take gratification in any form other than the legal remuneration from any person or agency or be involved in any act of moral turpitude or criminal offence.
- (ii) No Academic Staff shall, while on leave, accept any service or employment.
- (iii) A Academic Staff shall not, without prior permission of the Competent Authority of the Institute, engage himself directly or indirectly in any trade or business whatsoever or any consultancy work or part-time teaching or undertake any other work.
- (iv) No Academic Staff shall undertake private tuition.

- (v) For the interest of the Institute, the Principal / Registrar / HOD of the concerned Department may require a Academic Staff to do any additional work commensurate to the status and duties of the concerned Teacher.
- (vi) If any criminal or insolvency proceedings are initiated during his service against a Teacher of the Institute, he shall report the facts of the legal proceedings to the Principal at the earliest opportunity.
- (vii) No Academic Staff shall indulge in disorderly conduct and obstruct or hamper work in the office and the Institute campus.
- (viii) All Academic Staff shall carry out what their Superiors desire and as laid down in the plans and policies of the Institute.
- (ix) They shall keep their Superior informed about the progress of the assignment done in the respective Departments and in the office.
- (x) They shall ensure that work/assignment is performed as per the standard methods and procedures laid down.
- (xi) They shall co-ordinate the work of their Department with that of other Departments and develop harmony and team spirit.
- (xii) They shall be punctual, self-disciplined and be alert so as to be able to take note of irregularities in work/assignment performance.
- (xiii) They shall be required to take permission from the Principal in case of late attendance and early departure and the actual time of arrival and departure must be recorded in the electronic machine (Attendance Register) as per prescribed norm.
- (xiv) They shall be required to be present in the office during the normal working hours of the Institute as per Office Order issued by the Principal from time to time. But the Competent Authority of the Institute may require their services on holidays, Off-day at any time and beyond the normal working hours for matters requiring urgent attention.
- (xv) They shall not be allowed to leave their services in the Institute during the continuance of the semester.
- (xvi) No Academic Staff of the Institute shall engage himself or participate in any demonstration which involves incitement to an offence.
- (xvii) As colleagues, they have obligations that derive from common membership in the community or scholars. They do not discriminate against or harass colleagues. They respect and defend the free enquiry of associates. In the exchange of criticism and ideas, they must show due respect for opinions of others. They acknowledge academic debts and strive to be objective in their professional judgement of colleagues. They must accept their faculty responsibilities for the governance of their Institute.
- (xviii) They shall be not be allowed to form any group/association/union without the prior permission of the Competent Authorities of the Institute.
- (xix) No Academic Staff shall, except in accordance with any general or special Order of the Institute or in the performance in good faith of the duties assigned to him,

communicate directly or indirectly, any official document or any part thereof or information to any Officer or other employee, or any other person to whom he is not authorised to communicate such document or information nor shall take photograph of the Institute building, laboratory, workshops etc. or take micro-films of any document without specific permission from the Principal.

4.14.2 Non-Teaching Staff

DUTIES

- (i) All Non-teaching Staff shall discharge their duties above all personal, political and other consideration and maintain absolute integrity and devotion to duty and shall conduct themselves in a manner which will enhance the reputation of the Institute.
- (ii) They shall abide by and comply with all the rules and regulations, standard practices/norms of the Institute and all Orders and Directions of their Superior Authorities.
- (iii) They shall extend utmost courtesy and attention to all persons with whom they have to deal in the course of their duties.
- (iv) They shall, notwithstanding with their personal views on any matter relating to policy and programme of the Institute, carry out faithfully the duties and responsibilities entrusted to them.
- (v) They shall practice, promote and encourage collective functioning for the betterment of the Institute and apply their personal endeavor and initiative for the development of harmonious and peaceful interpersonal relationship among the employees within or outside the Institute premises.
- (vi) They shall initiate corrective steps, where necessary, to improve work performance in their respective fields.
- (vii) They shall be required to observe the scheduled hours of work, during which he must be present at the place of his duty. Except for valid reasons and/or unforeseen contingencies, no employee shall be absent from duty without prior permission.
- (viii) They shall endeavor to promote the interest of the Institute and act in a manner which shall be conducive to academic environment for reaching Excellency in the field of Engineering and Technology and shall not act in any manner prejudicial thereto.

OBLIGATIONS

- (i) No Non-teaching Staff shall commit any misconduct or take gratification in any form other than the legal remuneration from any person or agency or be involved in any act of moral turpitude or criminal offence.
- (ii) No Non-teaching Staff shall, while on leave, accept any service or employment.
- (iii) A Non-teaching Staff shall not, without prior permission of the Competent Authority of the Institute, engage himself directly or indirectly in any trade or business whatsoever or any consultancy work or part-time teaching or undertake any other work.

4.15 Working Hours

- (i) For all categories of employees including the Non-teaching Staff, the normal duty period will be not less than 8 hours starting from 9:15 a.m. and ending at 5:15 p.m. with a lunch recess of half an hour. The commencement of duty will be based on the fixed starting time. However, depending upon exigencies marginal variation may take place as per direction of the Competent Authority.
- (ii) No employee shall leave the place of work during the duty hours without the permission from the Heads of Departments concerned. Even in case of official business, due information should be left with such persons in order to avoid/avert confusion of any kind. For all kinds of leave of absence, the norms and procedures as stipulated in the Leave Rules shall be followed.
- (iii) If an employee being present at the place of his duty is found not working without any approved reason or refuses to work at any time during the prescribed hours of work on any day, he shall, in addition to being liable to such disciplinary action as may be taken against him for dereliction of duty, be deemed to be absent without leave for that day and shall not be entitled to draw any Pay or Allowance for such day.
- (iv) Library working hours are as follows:
1st Slot – 9:10 a.m. to 4:40 p.m.
2nd Slot – 11:00 a.m. to 6:30 p.m.

4.16 Work Load

The semester-wise Annual Academic Calendar for the Institute shall be framed by the Principal in consultation with the Heads of Departments concerned and this Calendar shall be followed accordingly.

In an Academic Year, the work load of a Teacher in full time employment shall not be less than the minimum prescribed by the AICTE/UGC and the affiliating University norms. Every Teacher shall be available at the Institute during the working hours of the Institute.

4.17 Attendance

- (i) Every employee of the Institute including the Principal, on arrival at the Institute shall record his attendance in the electronic machine in the manner it is allowed there and shall do it again at the time of departure so as to facilitate automated recording of his time of arrival and time of departure.
- (ii) Punctuality in attendance should be strictly observed by the employees. A maximum period of 15 minutes grace for putting the attendance may be allowed at the discretion of the Principal or an Officer authorised by him on his behalf from the time of normal commencement of duty. Any employee reporting for duty after 15 minutes and upto the 30 minutes from the normal commencement of duty will be marked late on that day and two such late marking in a month will entail loss of half day's Casual leave is due to his credit; such period shall be treated as leave without

- (iv) In addition to the office-work, a Non-teaching Staff shall perform supervision and other works in connection with Examinations conducted by the University and/or the Institute or any other extra-curricular works as may be allotted to him by the Principal/Registrar.
- (v) In the best interest of the Institute, the Principal/Registrar may require a non-teaching Staff for getting any additional work done commensurate to the status and duties of the concerned Non-teaching Staff.
- (vi) If any criminal or insolvency proceedings are initiated during his service against a Non-teaching Staff of the Institute, he shall report the facts of the legal proceedings to the Principal/Vice Principal/Registrar at the earliest opportunity.
- (vii) No Non-teaching Staff shall indulge in disorderly conduct and obstruct or hamper work in the office and the Institute campus.
- (viii) All Non-teaching Staff shall keep their Superior informed about the progress of the assignment done in the respective Departments and in the Office.
- (ix) They shall ensure that work/assignment is performed as per the standard methods and procedures laid down.
- (x) They shall co-ordinate the work of their respective Department with that of other Departments and develop harmony and team spirit.
- (xi) They shall be punctual, self-disciplined and be alert so as to be able to take note of irregularities in work/assignment performance.
- (xii) They shall be required to take permission from the Principal/Registrar in case of late attendance and early departure.
- (xiii) They shall be required to be present in the Office during the normal working hours of the Institute as per Office Order issued by the Principal/Registrar from time to time. But the Competent Authority of the Institute may require their services at any time beyond the normal working hours including at night for matters requiring urgent attention.
- (xiv) No Non-teaching Staff of the Institute shall engage himself or participate in any demonstration which involves incitement to an offence.
- (xv) No Non-teaching Staff shall, except in accordance with any general or special Order of the Institute or in the performance in good faith of the duties assigned to him, communicate directly or indirectly, any official document or any part thereof or information to any Officer or other employee, or any other person to whom he is not authorized to communicate such document or information nor shall take photograph of the Institute building, laboratory, workshops etc. or take micro-films of any document without specific permission from the Principal/Registrar.

NOTE:

Any other relevant work, duties and responsibilities deemed fit and necessary and assigned from time to time by the Principal of the Institute shall be strictly adhered to and complied with by all Academic and Non-teaching Staff including Officers of the Institute.

Pay and Allowance, if no leave stands to his credit. Nothing in this rule shall, however, prejudice the right of the Competent Authority of the Institute from taking disciplinary action against the erring employee. Any employee reporting for duty after 30 minutes from the time of normal commencement of work should apply for half day leave.

- (iii) All absence for duty shall be covered by a prior application or intimation in writing. For absence under unavoidable circumstances application for condonation of absence should be submitted as early as possible.
- (iv) Any staff members can avail one early exit at 3.30 pm once in a month.

4.18 Misconduct

‘Misconduct’ is an act or conduct which is prejudicial to the interest of the Institute or likely to impair the reputation of the Institute or create unrest and can be performed even outside the premises of the Institute and beyond duty hours.

The following lapses would constitute misconduct on the part of a Teacher/Laboratory Instructor:

- a) Failure to perform academic duties such as preparation of lectures, demonstration, assessment, guidance, invigilation and all other work connected with Examinations.
- b) Gross partiality in assessment of students, deliberately over marking, under marking or attempts at victimization on any ground.
- c) Inciting students against other students, Institute or administration. This does not interfere with the right of a Teacher/Laboratory Instructor to express his opinion on principles in seminars or other places where students are present.
- d) Raising questions of caste, creed, religion, race or sex in his relationship with his colleagues and trying to use the above consideration for improvement of his prospects

Without prejudice to the generality of the term ‘misconduct’ the following acts of omissions and commission shall be treated as misconduct.

MINOR MISCONDUCT

- (i) Absence without leave or over-staying the sanctioned leave for more than three consecutive days without sufficient grounds or proper or satisfactory explanation.
- (ii) Habitual late attendance and habitual absence from one's place of work during working hours.
- (iii) Organizing, holding or attending or taking part in any meeting within the premises of the Institute without prior sanctioned of the Competent Authority of the Institute.
- (iv) Leaving the Institute without permission during scheduled working hours.
- (v) Obtaining or attempting to obtain leave of absence by false pretence.
- (vi) Violation of Orders regarding attendance and Office discipline.
- (vii) Committing nuisance on the premises of the Institute.

alshin
PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH- 711204



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

MAJOR MISCONDUCT

- (i) Willful insubordination or insult to Superiors or disobedience of any lawful and reasonable Order of a Superior.
- (ii) Theft, fraud or dishonesty in connection with the business or property of the Institute or property of another person within the premises of the Institute.
- (iii) Taking or giving bribes or any illegal gratification.
- (iv) Possession of pecuniary resources or property disproportionate to the known source of income.
- (v) Furnishing false information regarding name, qualification, previous service or during the course of employment.
- (vi) Acting in a manner prejudicial to the interest of the Institute.
- (vii) Habitual absence or absence without leave for more than 7 days.
- (viii) Neglect of work or negligence in the performance of duty including slowing down of work.
- (ix) Damage to any property of the Institute committed willfully or by negligence.
- (x) Riotous or disorderly or indecent behavior in the premises of the Institute or outside such premises where such behavior is related to or connected with the employment.
- (xi) Sleeping while on duty.
- (xii) Commission of any act which amounts to a criminal offence involving moral turpitude.
- (xiii) Purchasing properties, machinery, stores etc., from or selling properties, machine, stores etc., to the Institute without express permission in writing from the Competent Authority of the Institute.
- (xiv) Commission of any act subversive of discipline or of good behaviour either individually or collectively.
- (xv) Aiding or abetting with outside group to cause harassment to the Administration of the Institute.
- (xvi) Creating groupism, factions, disharmony among the employees or indulging in activities that are subversive for a harmonious and peaceful atmosphere conducive for a place of learning.
- (xvii) Possession of lethal weapon or any other articles on the premises of the Institute detrimental to the security of the Institute or persons concerned.
- (xviii) Spreading false rumors or giving false information or making derogatory statements (written or oral) which tend to bring the Governing Body of the Institute or its Officers into disrepute.
- (xix) Carrying on money lending or any other private business.
- (xx) Interfering with the record of attendance or means or recording attendance of himself or any other employee or willful falsification, defacement or destruction of any records of the Institute.
- (xxi) Consumption or possession of alcohol or prohibited drugs on the premises of the Institute or reporting for duty under the influence of alcohol or prohibited drugs.

- (xxii) Disturbing the peaceful atmosphere of the Institute premises by demonstrating, shouting, or loud talk prejudicial to the peaceful and discipline operation.
- (xxiii) Holding any meeting, sticking or distributing handbills, notices, leaflets, booklets, pamphlets, posters or collecting of any money in the premises without prior permission from the Competent Authority.
- (xxiv) Refusal to accept any Order or communication addressed to the employee by the Principal or an Officer authorized by him on his behalf.
- (xxv) Giving to the press, TV, Radio or any general news media any comment, talk or articles regarding the Institute Administration without prior permission from the Competent Authority of the Institute.
- (xxvi) Acts of immorality within or outside the Institute premises or other acts which affects the reputation of the Institute or disturbs normal employee relationships in the Institute.
- (xxvii) Communicating directly or indirectly any official documents or information to any employee or any other person to which he is not authorized to communicate such documents or information except in accordance with any general or special Order of the Institute Administration in the performance of the duties assigned to him.
- (xxviii) Conviction of any Court of Law for any criminal offence.

NOTE: The above list is not exhaustive but is illustrative of the various kinds of misconduct.

4.19 Penalties for Misconduct

The following penalties may, for good and sufficient reasons and in the manner prescribed, be imposed on an employee by the Competent Authority of the Institute, namely:

- (i) Censure;
- (ii) Warning;
- (iii) Suspension;
- (iv) Withholding of increments or promotion.
- (v) Recovery from Pay of the whole or part of any pecuniary loss caused to the Institute by an employee;
- (vi) Reduction to a lower stage in the Scale of Pay for a specified period with further direction as to whether or not will earn increments of Pay during the period of such reduction and whether on the expiry of such period the reduction will or will not have the effect of postponing the future increments of his Pay;
- (vii) Reduction to a lower Scale of Pay, Grade or post which shall not ordinarily be a bar to the promotion of the Staff member to the Scale of Pay, Grade or post from which he was reduced with or without further directions regarding conditions to restoration of the grade, post or service from which was reduced with or without further directions regarding his seniority and Pay upon such restoration to that Grade or Pay;
- (viii) Compulsory retirement;



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

- (ix) Removal from service, which shall not be a disqualification for future employment under the Institute;
- (x) Dismissal from service, which shall ordinarily be a disqualification for future employment under the Institute.

NOTE:

- (i) No order of imposing any of the aforesaid penalties shall be made without informing the employee concerned of the charge(s) against him and giving him an opportunity of being heard and except after an enquiry held in the manner prescribed;
- (ii) Provided that penalties specified in sub-clause sub-clause (x) of clause-4.19 shall not be imposed on a permanent employee except on ground of being persistently engaged in activities prejudicial to the academic or administrative or financial interest of the Institute or habitual dereliction of duty or physical infirmity likely to interfere with the normal discharge of duties or mental derangement or moral turpitude.
- (iii) Compulsory retirement means that the Appointing Authorities may get the employee retired compulsorily as a measure of punishment before he has attained the age of retirement.

4.20 Method of Holding Disciplinary Procedure

No order of imposing any of the penalties specified in sub-clause (i) to (x) of clause-4.19 of the rules shall be made except after an enquiry is held in the manner as provided hereunder:

- (i) There shall be a 'Disciplinary Authority' who shall draw up or caused to be drawn up against a delinquent employee a formal charge-sheet. The Principal of the Institute shall be the disciplinary authority in respect of any employee provided that the disciplinary authority shall not be entitled to impose any punishment other than "Censure" on any employee and in case the Disciplinary Authority is of opinion that the gravity of the offence proved may warrant imposition of any punishment other than Censure, it shall be the duty of the Disciplinary Authority to place all papers including the findings of the Disciplinary Authority on an enquiry, if any, before the Governing Body or a Committee formed for this purpose for taking such steps as it may deem appropriate.
- (ii) The Disciplinary Authority shall deliver or caused to be delivered to such an employee a copy of the charge and the statement of imputation of misconduct or misbehaviour prepared as above and shall require the employee to submit to the Enquiring Authority within such time as may be specified a written statement of his defence and to state whether he desires to be heard in person.
- (iii) The Disciplinary Authority shall in all such cases constitute an Enquiring Authority for the purpose of such enquiry and forward to such enquiring Authority-
 - a) a copy of the specific charge(s) and the statement of imputation of misconduct or misbehaviour, if any,
 - b) a copy of the statement of witness, if any,

4.21 Suspension

- (i) Where an employee is charged with serious misconduct, it is not considered desirable that he should remain on duty; he may be suspended from duty pending enquiry. The Order of suspension shall be given in writing and shall be followed within 7 days by a charge-sheet setting out in precise terms, as far as possible, the misconduct alleged against him. During the period of suspension, an employee shall not enter the premises of the Institute, nor shall he leave the station without the permission of the Institute Administration.
- (ii) Pending enquiry, an employee may be suspended by the Principal or an Officer so authorized by the Competent Authority of the Institute and if he has been so suspended the enquiry be held as soon as possible and normally 7 days from the commencement of suspension.
- (iii) While under suspension, the employee will be entitled to Subsistence Allowance equal to fifty percent of Basic Pay plus fifty percent of Dearness Allowance for the first 90 days and thereafter seventy five percent thereof.
- (iv) The Subsistence Allowance paid to an employee is not refundable in any circumstances, but the amount so paid is adjustable against the Pay which may be paid to an employee on his being exonerated of the charge after the departmental enquiry or criminal proceedings.
- (v) The payment of Subsistence Allowance while under suspension, will be subject to his not taking up employment elsewhere during the period of suspension.

4.22 Acceptance of Communication

If any employee refuses to accept a charge-sheet, Order or any other communication served by the Competent Authority, provided he has been asked to accept the same in the presence of at least one witness, he will commit a further misconduct under clause-4.19, and he will be liable to disciplinary action. A copy of the said letter should be then sent by Registered post with Acknowledge Due to the employee concerned. If he does not accept the Registered Acknowledgement Due letter or does not attend the enquiry, it will be held ex-parte.

4.23 Termination

- (i) The services of an Ad-hoc employee or an employee who is on contract may be terminated by the Appointing Authorities any time without assigning any reason. If his appointment is made for a specific period or specific job on the expiry of such period or on completion of such job, or if his appointment is made against a temporary post for which the post is created.
- (ii) An employee appointed against a permanent vacancy will be placed on probation for one year from the date of appointment. This probation may be extended for a period as deemed fit and proper by the Competent Authority of the Institute. An employee appointed on probation, a letter terminating or extending the probationary period of that employee shall normally be served on him 7 days before the expiry of the probationary period.

- (iii) During the period of probation, an employee's services may be terminated any time with one month's Notice or one month's salary in lieu of Notice and without assigning any reason. Likewise the probationer may terminate his services in the same manner.
- (iv) The services of a confirmed employee may be terminated by one month Notice on either side or by payment of one month salary by either party in lieu of Notice with reasons being assigned by either party.
- (v) Except as a measure of punishment, or if otherwise, provided in the terms of appointment, the services of a confirmed employee may be terminated by the Appointing Authorities by giving him one month Notice or by payment of one month salary or for such period as the Notice falls short of three-month, if he is declared medically unfit on account of any ailment disabling him from discharging his normal duties. The Competent Authority is, however, reserves the right not to release any employee even if he tenders resignation in case any disciplinary proceedings/ vigilance case either pending or is contemplated against him.
- (vi) Notwithstanding anything contained in these rules no Notice shall be necessary if termination of service is made under an agreement or contract which specifies a date for such termination. Where an employee has been convicted of criminal offence involving moral turpitude in a Court of Law, the employee may be dismissed from service without following the procedure laid down in these rules.

4.24 Punishment

Orders of any punishment shall be issued by such Authorities who have been delegated with appropriate powers by the Appointing Authorities. In awarding the punishment, the Competent Authority shall take into account the gravity of the punishment, the previous record of the employee and other extenuating or aggravating circumstances that may exist. The Competent Authority of the Institute shall communicate the Order of punishment to the employee concerned within 7 days from the date of Order by Registered post with Acknowledgement Due and shall file the Acknowledgement with the record.

NOTE:

The final Authority responsible for maintenance of discipline among the students of the Institute shall be the Principal. His directions in that behalf shall be carried out by the Registrar, Heads of departments, the Authorities of the Hostels.

alalini
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

- c) evidence providing the delivery of documents referred to under (b) above to the employee concerned.
- (iv) The employee shall appear in person before the Enquiring Authority on such date and such time within 14 days from the date of receipt by him of the specific charge/charges, as the enquiring Authority may by a Notice in writing which may be sent by Registered post with Acknowledge Due, specify in this behalf or within such further time not exceeding 14 days as the Enquiring Authority may allow.
- (v) If the employee, who has not admitted any specific charge(s) in his written statement of defence, appears before the Enquiring Authority, such Authority shall ask him whether he is guilty or has any defence to make. If he pleads guilty any of the charges, the Enquiring Authority shall record the plea, sign the record and obtain the signature of the employee thereon. The Enquiring Authority shall return a finding of guilt in respect of the specific charge(s) of which the employee pleads guilty. If the employee fails to appear within the specified time or refuses or omits to plead or claims to be tried, the Enquiring Authority shall require the Disciplinary Authority or its representative to produce the evidence by which it proposes to prove the specific charge(s) and shall adjourn the case to a later date not exceeding 30 days after recording an Order that the employee may for the purpose of his defense-
 - a) inspect within five days of the Order or within such further time not exceeding five days as the Enquiring Authority may allow, the documents as mentioned in the list by the Disciplinary Authority.
 - b) submit a notice within 14 days of the Order or within such further time not exceeding 14 days as the Enquiring Authority may allow, asking for the discovery or production of any document, which is in the custody of the Disciplinary Authority.
- (vi) On receipt of the Notice for the discovery or production of documents, the enquiring Authority shall ask the Disciplinary Authority to allow the employee to inspect such documents and to take such notes as may be necessary within a specified date and to allow the records to be dispatched to the Enquiring Authority, if required;
- (vii) Provided that the Enquiring Authority may for reasons to be recorded in writing refuse to requisition such of the documents as are in the opinion not relevant to the case.
- (viii) After the completion of the enquiry, the Enquiring Authority shall prepare a Report which shall contain-
 - a) the specific charge(s) and the statement of imputations of misconduct or misbehavior,
 - b) the defense of the employee in respect of the specific charge(s),
 - c) an assessment of the evidence in respect of the specific charge(s),
 - d) the finding on the specific charge(s) and the reason therefore.
- (ix) The Disciplinary Authority shall consider the Report of enquiry and other relevant papers and records it findings on the specific charge(s).

- (x) If the Disciplinary Authority, having regard to its findings on the charges, is of the opinion that any of the penalties as specified under sub-clauses (i) to (ix) of clause-4.19 of the rule should be imposed, it shall pass appropriate Orders in the case. If the Disciplinary Authority, having regard to its findings on the charge(s), is of the opinion that any of the penalties as specified under sub-clauses (x). of the clause-4.19 of the rule should be imposed, it shall-
- a) furnish to the employee a copy of the Report of the Enquiring Authority and a statement of its findings, and
 - b) give him Notice stating the punishment proposed and the ground therefor and calling upon him to submit within a period not exceeding 14 days such representation as he wishes to make on the punishment proposed but on the basis of the evidence adduced during the enquiry.
- (xi) The Disciplinary Authority shall consider the representation made by the employee in response to the Notice and determine what penalty, if any, should be imposed on the employee and pass appropriate Orders on the case.

NOTE:

- (i) The concerned employee, if he so desires, may bring a co-employee of his choice who must be an employee of the Institute to assist him in the enquiry. The charge-sheeted employee and the co-employee shall be given the opportunity to examine and cross-examine the witnesses also to produce his own witnesses in defence. The charge-sheeted employee will have the right to inspect the documents, if it is produced or relied upon by the Competent Authority of the Institute. Where such enquiry relates to the alleged misconduct of several employees, the enquiry may be held for all employees together.
- (ii) If after enquiry an employee is adjudged guilty of his misconduct alleged against him and punishment is awarded, the employee shall not be entitled to any remuneration for such period. If, however, he is found not guilty of the alleged misconduct, he shall be reinstated in his post and shall be paid his Pay and Allowance which he would have been received if he had not been suspended, the period of suspension being treated as on duty.
- (iii) In case the proceedings are conducted in a language which is not understood by the accused, the Institute Administration will arrange for an interpreter.
- (iv) The employees who are dismissed or have resigned will not be normally re-employed.
- (v) An employee who is convicted in a Court of Law for an offence involving moral turpitude who is sentenced to imprisonment will be liable for dismissal without enquiry and will not be reinstated in employment.
- (vi) In all cases the '**Principle of Natural Justice**' shall be followed and the employee shall be given adequate opportunity to defend his case.
- (vii) Provided that no pleader or agent shall be allowed to appear at the enquiry on behalf of the Institute or the employee concerned.

4.25 Grievance & Appeals

Whenever an employee wishes to put forth any claim or seeks redress of any grievance or of any wrong done to him, he must forward his case through proper channel, and shall not forward advance copies of his application to any higher Authority, unless the lower Authority has rejected the claim, or refused relief or the disposal of the matter is delayed.

No employee shall be signatory to any joint representation addressed to the Authorities for redress of any grievance or of any other matter.

An employee aggrieved by an Order imposing upon him any penalty or penalties by the Competent Authority shall be allowed to appeal to the Chairman of the Governing Body within 30 days from receipt of the Order imposing the penalty or penalties, provided that the appellant Authority may entertain the appeal after the expiry of the said period, if he satisfied that the appellant had sufficient cause for not preferring the appeal in time. The decision of the Chairman in this regard shall be final and binding on all concerned.

4.26 Manuer of Serving Notice

Any Notice which is required to be issued for carrying out the purposes of the rules may be served in any of the following manner:

- a) Upon the addressee, if present;
- b) by messenger;
- c) by Registered post with Acknowledgement Due.

4.27 Taking Part in Politics & Elections

- (i) No employee shall take active part in politics so as to cause interference in the discharge of his duties, nor shall he in any manner associate himself with any movement or organization which is or tends directly or indirectly, to be subversive of law and order or in the interest of Institute education.
- (ii) No employee shall exploit his official position for political ends or permit the use of Institute facilities for political purposes.
- (iii) No employee shall without previous intimation to the Management or the Principal, as the case may be, stand for election or accept nomination to any local body, Legislature of the State or Parliament nor shall he in any manner force his colleagues/subordinates or his students against their will for the canvassing of his election.
- (iv) An employee shall before seeking election or accepting nomination as aforesaid give an undertaking to the Institute that in the event of his being elected or nominated he shall, if so required by the Institute, remain on leave with or without Pay as may be admissible to him under the rules for the period he remains a member of such local body, legislature or Parliament.

Provided that the granting of any leave to an employee nominated to any local body, Legislature or Parliament shall not prejudice his right to promotion, increment or other benefits, if any, to which he would have been entitled had he not proceeded on leave.

4.28 Demonstrations and Strikes

No employee shall engage himself or participate in any demonstration or strike which is prejudicial to the interest of the Institute or to the interest of public orders, decency or morality.

4.29 Criticism of the Institute

No employee shall in any document published anonymously or in his own name or in the name of any other person or in any communication to the press or in any public utterance or in social media, make any statement of fact or opinion;

- a) which has the effect of an adverse criticism of any policy or action of the Institute; or
- b) which is capable of embarrassing the relations between the Institute and the Central Government or any State Government or any other Institution or Organization or members of public;
- c) which exploits the name of the Institute or his position herein.

Provided that nothing in this rule shall apply to any statement made or views expressed by an employee in his official capacity or in the due performance of the duties assigned to him.

4.30 Unauthorized Communication of Information

No employee shall except in accordance with any general or special Order of the Competent Authority or in the performance in good faith of the duties assigned to him, communicate, directly or indirectly, any official document or information to any person to whom he is not authorized to communicate such document or information.

4.31 Private Trade or Employment

No employee shall except with previous permission of the Competent Authority engage directly or indirectly in any trade or business or undertake any employment outside his official assignment. No member of Academic Staff shall offer private tuition in subjects offered by his own Department.

4.32 Investment, Lending and Borrowing

- (i) No employee shall speculate in any business nor shall make or permit his wife or any member of his family to make any investment likely to embarrass or influence him in the discharge of his official duties.
- (ii) No employee shall lend money at interest to any person nor shall he borrow money from any person with whom he is likely to have official dealings.

4.33 Insolvency, Habitual Indebtedness and Criminal Proceedings

- (i) An employee shall so manage his private affairs as to avoid habitual indebtedness or insolvency. When an employee is found liable to arrest for debt or has recourse to insolvency or when it is found that a moiety of his salary is continuously being attached, he may be liable to dismissal. Any employee who becomes the subject of legal proceedings for insolvency shall forthwith report full facts to the Institute Authority.
- (ii) An employee who gets involved in some criminal proceedings shall immediately inform the Competent Authority to which he is attached, irrespective of the fact whether he has been released on bail or not.

An employee who is detained in police custody whether on criminal charge or otherwise for a period longer than 48 hours shall not join his duties in the Institute unless he has obtained written permission to that effect from the Principal.

4.34 Viudication of Acts and Character of Employee

No employee shall, except with the previous sanction of the Competent Authority, have recourse to any court of law or to press for the vindication of any official act which has been the subject matter of adverse criticism or an attack of defamatory character.

Provided nothing in this rule shall be deemed to prohibit an employee from vindicating his private character or any act done by him in his private capacity.



PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

LEAVE RULES

4.35 Right to Leave

Leave of absence from duty cannot be claimed as a matter of right and may, on application through ESS portal by an employee, be granted only when satisfactory grounds have been shown. When the exigencies of the Institute services so require, the Authority competent to grant leave may refuse leave of any description or when such leave is granted, revoke such leave or part thereof. No employee who is under suspension shall be granted any leave.

4.36 Classification of Employees for Calculation of Leave

For the purpose of calculation of leave as also of availing of such leave the employees of the Institute shall be classified as follows:

- (i) **Vacation Staff:** Faculty members, the Laboratory Instructors and the Workshop Assistants and other workshop Staff members by whatever designation they are identified.
- (ii) **Non-Vacation Staff:** The Principal, the Registrar, other categories of Officers, all categories of non-teaching administrative and office Staff - skilled or unskilled placed in any section, cell or branch (including Library) of the Institute and the Maintenance Engineers/Technicians of all specified disciplines and branches and such other Staff as may be specified by the Competent Authority from time to time.

Provided that all Non-Vacation Staff shall be entitled to enjoy the Puja Vacation along with the Vacation Staff.

Depending on the exigencies of circumstances, the Principal may at all times call any Vacation Staff for duty on such day(s) during any vacation/recess as he may deem necessary in the interest of the Institute.

4.37 Classification of Leaves

The following kinds of leave shall be admissible to the employees of the Institute subject to the conditions mentioned hereunder:

- (i) Casual Leave
- (ii) Earned Leave
- (iii) Medical Leave
- (iv) Maternity Leave
- (v) Compensatory Casual Leave
- (vi) Extra-ordinary Leave
- (vii) Special Disability Leave


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

- (viii) Quarantine Leave
- (ix) Study Leave
- (x) Duty Leave

4.38 General Conditions of Leave

- (i) All applications for leave or for extension of leave shall be made through ESS portal and sanction for the leave or extension of leave, as the case may be applied for, shall be obtained before it is availed of:
Provided that if the Authority competent to grant leave is satisfied that it was not possible to apply for or obtain the sanction for leave of absence before hand and provided he has been intimated telephonically or by e-mail, leave may be granted with retrospective effect; but all applications for leave with retrospective effect shall be submitted within 02 days.
- (ii) Unreported absence may involve the loss of Pay and Allowances. Habitual irregularities or frequent absence without leave will be considered gross negligence of duty.
- (iii) No vacation and non-vacation Staff on leave shall be permitted to accept any remunerative occupation or undertake professional work while on leave except with the permission of the Principal or the Registrar as the case may be.
- (iv) These leave rules shall apply to all full-time vacation and non-vacation staff of the Institute.
- (v) When a Teacher is granted Study leave, Sabbatical leave, or any other kind of long leave, he should furnish clearance Certificate regarding Books, assets and other dues before he actually avails of the leave.
- (vi) No vacation and non-vacation Staff on leave may return to duty before the expiry of the period of leave granted to him without the previous permission of the Authority granting leave.
- (vii) Leave of a particular kind cannot be converted into a leave of another kind except with the written permission of the Competent Authority to grant the leave.
- (viii) Leave shall be calculated on the basis of a Financial Year and those not joining the employment in the beginning of the Financial Year will be entitled to applicable leave on pro-rata basis from the month of joining their duties.
- (ix) Each vacation and non-vacation Staff, on arrival at the Institute shall record his attendance in the electronic machine in the manner it is allowed there and shall do it again at the time of departure so as to facilitate automated recording of his time of arrival and time of departure. In case of any problem in the electronic machine, he will record his attendance and departure time in the Administrative Office after getting endorsed by the Principal/Registrar through the HOD or Section-in-charge.
- (x) The Institute's working hours having been fixed between 9.30 a.m. and 5.00 p.m., each employee shall record his arrival by 9.15 a.m. with a grace period upto 9.30

a.m. If the arrival time as recorded by the computer exceeds 9.30 a.m. but does not exceed 9.45 a.m., the employee will be recorded late. When it exceeds 9.45 a.m. but does not exceed 1-00 p.m. $\frac{1}{2}$ day's Casual leave will be deducted. For every 2 (two) days' late attendance in a month, $\frac{1}{2}$ day's Casual leave will be deducted from his leave account. If there is no Casual leave at his credit, the day's leave will be leave without pay. However, one late is permissible in a month.

- (xi) An employee is eligible to avail maximum 02 numbers of $\frac{1}{2}$ day's Casual leave in addition to the $\frac{1}{2}$ day's Casual leave deducted for two days' late attendance per month.
- (xii) On the reopening day of the Institute immediately after summer, Puja or winter holidays, absence of any employee would lead to leave without pay. It may only be condoned by the Governing Body.
- (xiii) Provided further that the Authority, in the greater interest of the Institute, will be within its power to cancel, wholly or partly, any such facility at any point of time or to give different direction with regard to pursuing such higher studies by a vacation and non-vacation Staff and in all cases the decision of the Competent Authority will be final and binding upon everybody.
- (xiv) For the purposes of calculating $\frac{1}{2}$ day's Casual leave sought to be taken against application in writing, the specified hours shall be as follows:

1st half : between 9.30 a.m. and 1.00 p.m.

2nd half : between 1-00 p.m. and 5.00 p.m.

Leave records of all vacation and non-vacation Staff of the Institute shall be kept with the Administrative Department in their respective Files.

4.39 Re-Calling From Leave

The Principal of the Institute may, at his discretion, recall to duty, at any time, any employee of the Institute who may be on leave, except on medical grounds.

4.40 Authority for Granting Leave

- (i) For all such category of employees as are concerned with academic activities of the Institute, the Principal or during his absence, any other designated Officer acting on his behalf as such shall be the Competent Authority to sanction the leave.
- (ii) For Non-Vacation Staff, the Principal and/or the Registrar of the Institute shall be the Competent Authority to sanction the leave.
- (iii) The Chairman of the Governing Body shall be competent to sanction leave to the Principal. Study leave and Extra-ordinary leave shall only be granted by the Chairman.

4.41 Leave Salary

Leave salary shall be calculated on the basis of the Pay drawn by an employee of the Institute on the day preceding that on which the leave commences, unless otherwise determined by the Governing Body of the Institute.

4.42 Leave Account

The leave account of all employees of the Institute shall be maintained by the Registrar of the Institute, or an Officer authorized by the Principal on his behalf.

4.43 Combination of Different Kinds of Leave

Any kind of leave may be granted in combination with or in continuation of any other kind of leave other than Casual leave. Casual leave cannot be combined with any other kind of leave except Compensatory Casual Leave.

4.44 Absence without Leave or Overstaying

An employee shall be liable to disciplinary action, if he remains absent without leave or in excess of the period of leave originally sanctioned or subsequently extended. Where such period of absence exceeds 7 consecutive days, he shall not be entitled to any Pay and Allowance for the period of such absence, unless the Competent Authority decides otherwise on the basis of the explanation of the employee.

Willful absence from duty not covered by granted leave will be treated as misconduct and break in service for all purposes viz. increment, seniority etc. unless condoned by the Competent Authority. During the service tenure, ordinarily, leave without pay (LWP) will lead to break in service and accordingly, seniority will be affected.

Leave Rules for Non-Vacation Staff

4.45 Casual Leave

- (i) Casual leave is the leave on full Pay which a Staff member may need to avail of for a short period not exceeding 3 days in a month with or without previous intimation on account of urgent private affairs or certain emergency which may arise. Casual leave can not be accumulated nor can it be combined with any other kind of leave except Compensatory Casual leave.
- (ii) Casual leave may be granted for 14 days within one complete Financial Year. Casual Leave can either be prefixed or suffixed but cannot be both prefixed and suffixed to vacation/long holidays. However, it can be prefixed and/or suffixed to Sundays, Off-days and holidays provided that such leave shall not exceed consecutive five days including the intervening Sundays, Off-days and/or holidays. If that exceeds five days, the entire period of absence including the Sundays, Off-day and holidays will be deducted from his leave account. Sundays, Off-days and holidays, whether intervening, prefixed or suffixed, shall not be counted as Casual leave.

- (iii) Casual leave is allotted on pro-rata basis and is fractionable.
- (iv) Probationary Staff and Ad-hoc Staff shall be entitled to Casual Leave on pro-rata basis, if joined after the beginning of Financial Year. In case, such Staff joins in April and completes the service for the entire Financial Year, he will get full 14 days' Casual leave.
- (v) Casual leave should always be applied for and got sanctioned before it is taken except in case of emergency. In such a case the application for leave shall be submitted on the day the Staff resumes duty after leave.
- (vi) Casual Leave need to be got endorsed by the Head of Department concerned or Sectional in-charge.
- (vii) A Staff member may enjoy Casual leave for half of a day, provided that in no case full-day Casual leave and half-day Casual leave taken together shall exceed 14 days in a Financial Year.
- (viii) Casual leave to which an employee of the Institute may be entitled during any Financial Year shall cease to be due to him at the end of such Financial Year and shall not be accumulated or carried over to the following Financial Year.

4.46 Earned Leave

Earned leave is leave earned in respect of periods spent on duty.

- (i) Every full-time non-Vacation Staff shall be entitled to 30 days Earned leave in every Financial Year. Earned leave shall be credited to the leave account of an employee at the rate of 2 ½ days for each completed Calendar month of service which he has rendered in a Financial Year in which he is appointed.
- (ii) The leave to the credit of a non-vacation Staff at the end of the previous year shall be carried forward and must not exceed the maximum limit of 240 days.
- (iii) Earned Leave shall be granted at the discretion of the Competent Authority on application being made by the Staff member at least 15 days prior to the date on which he proposes to go on leave. Prior sanction should be obtained for extension of leave at least 7 days before expiry of such leave. Earned leave is not fractionable.
- (iv) Only permanent non-vacation Staff member of the Institute will be entitled to Earned leave for a period equal to 30 days in a Financial Year,
- (v) Earned leave can be combined with any other kind of leave except Casual leave. Sunday/Off-day/holiday may be prefixed or suffixed or both prefixed and suffixed to Earned leave. But, vacation/long leave can either be prefixed or suffixed to Earned leave.
- (vi) If Earned leave is combined with prefix or suffix or weekly off-days the entire period will be counted as earned leave.
- (vii) Earned leave may be granted for such reasons as may be considered by the Authority competent to grant such leave which may include:
 - a) Illness of the employee concerned (when medical leave exhausted);
 - b) Illness of a member of the family of such employee;

- c) Urgent personal exigencies like Parents expired, marriage etc.

4.47 Medical Leave

- (i) A Medical leave is the leave, which may be granted to a Staff member who becomes ill, on application being made by him. A Staff member may be granted Medical Leave for a period not exceeding 10 days with full Pay for every twelve months service completed.
- (ii) For more than 2 days full pay medical leave, application of leave to be supported by a Medical Fit Certificate from qualified Registered Medical Practitioner provided, however, that the Authority may ask the Staff member to submit to an examination by a Registered Medical Practitioner appointed by the Competent Authority before granting him leave.
- (iii) Staff member who has been granted Medical leave on Medical Certificate will be required to produce a Certificate of Fitness for resumption of duty after Medical leave.
- (iv) Medical leave will be granted on half Pay and admissible Allowances.
 - a) Medical leave can be combined with Earned leave with Medical Certificate upto a maximum of 240 days at a time provided that no such leave shall be granted under these rules unless the Authority competent to sanction leave has reason to believe that the Staff member will return to duty on its expiry.
 - b) Only permanent Staff members will be entitled to leave on medical ground.
 - c) A Staff member will be entitled to commute the half Pay leave that he has earned to full Pay leave for half that period on medical ground subject to production of a Certificate from a Registered Medical Practitioner.
- (v) Medical leave can be combined with any other kind of leave except Casual leave. Sunday/ Off-day/holiday may be prefixed or suffixed or both prefixed and suffixed to Medical leave.
- (vi) Medical leave can be carry forwarded to next financial year and can be accumulated upto 180 days (full pay).

4.48 Maternity Leave

- (i) A female full-time Staff member may be granted Maternity leave by the Authority competent to grant leave for a period of 90 days.
- (ii) Leave of any other kind except Casual leave may be granted in combination with Maternity leave, only if the application for the grant of such leave is supported by a Medical Certificate from a Registered Medical Practitioner.
- (iii) Maternity leave shall not be debited against the leave account.
- (iv) Maternity leave shall not be admissible more than twice during the entire service period.
- (v) During Maternity leave, she shall be paid normal salary.

alshii
PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204
63 | Page



MCKV INSTITUTE OF ENGINEERING

NAAC Accredited "A" Grade Autonomous Institute under UGC Act 1956
Approved by AICTE & affiliated to Maulana Abul Kalam Azad University of Technology, West Bengal

243 G.T. Road (N), Liluah, Howrah- 711204, West Bengal, India

Ph: +91 33 26549315/17 Fax +91 33 26549318 Web: www.mckvie.edu.in

4.49 Compensatory Casual Leave

- (i) All full-time employees of the Institute who may be required in the interest of the Institute, to work at least 5 hrs. during Sunday, Off-day or holiday except for Examination duties shall be entitled to leave of absence from duty for such number of days as may be determined by the Competent Authority. Any leave granted under this shall be on full Pay and Allowances and shall be called Compensatory Casual leave (CCL). Adhoc / temporary staff members are not eligible for CCL.
- (ii) CCL may be granted by the Principal and/or the Registrar on the recommendation of the Head of the Department or Section in-charge.
- (iii) No overtime or holiday Allowance shall be admissible for the period for which Compensatory Casual leave is granted.
- (iv) CCL cannot be accumulated and cannot be carried forwarded to the following Financial Year. It can be availed of within 3 months in lieu of which it is claimed and will lapse after that. However, if any one granted CCL at last month of financial year and doesn't consume then only it may carry forwarded to next month.
- (v) A maximum of 3 days CCL can be availed of at a time and it cannot be both prefixed and suffixed but it can either be prefixed or suffixed to Sundays, Off-days, holidays and vacation/long holidays.
- (vi) Any Vacation Staff member who is detained during any vacation for performing any duty shall be entitled to Compensatory Casual leave. Provided that no Vacation Staff will be entitled to any kind of leave - Compensatory or otherwise - for performing the University (WBUT) duties during vacation for which specific appointments are given by the University Authority on such terms and conditions as may be specified by then from time to time. The fact that such appointments are, if at all, routed or served through the Principal of the Institute, it will in no way mean that he is detained for work by the Institute Authority during the vacation.

4.50 Extra-Ordinary Leave

Extra-ordinary leave without Pay may be granted to a full-time non-academic Staff member in special circumstances on the following condition:

- (i) When no other leave is admissible.
- (ii) When other leave is admissible but the non-academic Staff member concerned applies in writing for the grant of Extra-ordinary leave.
- (iii) Not more than 30 days Extra-ordinary leave can be granted to any Staff member.
- (iv) Prior sanction of the Competent Authority has to be obtained before availing of such leave.

4.51 Special Disability Leave

If any member of the Staff is injured or meets with an accident requiring medical treatment while on official duty in Class room, Labs, Workshop or in any other work needed to discharge an official assignment, he is entitled to special Disability leave with full Pay and


PRINCIPAL

MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

Allowances subject to certification by a Registered Medical Practitioner not exceeding 7 days at a time and not exceeding a maximum period of 30 days during the whole period of service.

4.52 Quarantine Leave

- (i) Quarantine leave is leave of absence from duty necessitated by Order not to attend Office due to suffering from infectious diseases as mentioned below by **a member of the family** of the Staff concerned. Such leave may be granted on the basis of a Certificate of a Medical Officer or Public/Municipal Health Officer for a period not exceeding 21 days, or, in exceptional circumstances, for a period not exceeding 30 days. Quarantine leave will not be debited to leave account. A Staff member on Quarantine leave will not be treated as absent from duty.
- (ii) For the above purpose, small pox may be considered as infectious disease, chicken pox shall not, however, be considered as infectious disease unless the Medical Officer or Public/Municipal Health Officer considers that because of doubt as to the true nature of disease, e.g. small pox, there is reason for the grant of such leave.
- (iii) The following diseases shall also be treated as infectious for the purpose of grant of Quarantine leave:
 - a) COVID -19 b) Scarlet Fever, c) Plague (Bubonic or Typhonic), d) Typhus, e) Cerebro-spinal meningitis.
- (iv) For persons employed in the preparation and distribution of food, the following additional diseases shall also be treated as infectious :
 - a) Dysentery, b) Enteric fever (Typhoid fever), c) Malta fever, d) Paratyphoid fever.
- (v) A Staff member himself suffering from the Infectious disease as mentioned above will not be granted such leave.

Leave Rules for Vacation Staff

- (i) All full-time Vacation Staff of the Institute are entitled to vacation in any Calendar Year during the periods (summer and/or winter), the number of days so declared by the Competent Authority of the Institute.
- (ii) A Vacation Staff is entitled to 7 days Earned Leave in a Calendar Year and such Earned leave can be accumulated upto a maximum of 240 days in his period of service in the Institute.

4.53 Other Kinds of Leave

The other kinds of leave to which a full-time vacation Staff is eligible are:

Casual leave, Medical leave, Maternity leave, Compensatory Casual leave, Extra-ordinary leave, Special Disability leave and Quarantine leave on the same basis as are applicable to the Non-Vacation Staff of the Institute.

alakin
PRINCIPAL

MCKV INSTITUTE OF ENGG.

LILUAH, HOWRAH - 711204

4.54 Study Leave

- (i) Study leave may be granted by the Governing Body for advancement of knowledge and learning, for further study, training or research at a Institute or other Institution of higher education or place of learning to a Teacher either in this country or abroad. Study leave may be granted only when it is in the interest of the Institute.
- (ii) No Teacher of the Institute, shall be eligible for Study leave unless he has put in at least 3 years full-time active and continuous service in a permanent post under the Institute and is not due to retire there from within 5 years of his return from such leave.
- (iii) Study leave may be granted to a Teacher eligible for the same as per provisions in the foregoing clauses for a period not exceeding 3 years for pursuing higher studies leading to a degree higher than the one he possesses. Those, being eligible, who apply for leave for post-doctoral research, teaching assignment or higher studies or research not leading to a degree shall not be granted study leave exceeding 2 years, provided that the Governing Body may grant leave beyond the limits mentioned above at the discretion in exceptional circumstances. Such leave may be combined with a vacation.
- (iv) No extension of Study leave will be granted except in rare cases and on the merit therefore. An application for extension of Study leave shall be sent by the Teacher concerned by Registered Post so as to reach the Office of the Principal not later than three months before the expiry of the Study leave.
- (v) Study leave will not be granted more than twice during the career of a Teacher.
- (vi) No Teacher who has been granted Study leave shall alter substantially the course of study or the programme of research without the permission of the Governing Body. When the course of study falls short of Study leave sanctioned, the Teacher shall resume duty on the conclusion of the course of study.
- (vii) It should be the duty of the Teacher concerned granted Study leave to communicate immediately to the Institute any grants actually made to him and received by him during the course of the Study leave from any person or Institution whatsoever.
- (viii) A Teacher who has been granted Study leave shall on his return and re-joining the service of the Institute may be eligible to the benefit of the annual increments which the Teacher would have earned in the course of time he had proceeded on Study leave. No Teacher shall however, be eligible to receive arrears of increments.
- (ix) Study leave shall count as service provided the Teacher joins the Institute on the expiry of his Study leave.
- (x) Study leave granted to a Teacher should be deemed to be cancelled in case it is not availed of within 2 months of its sanction.
- (xi) Before proceeding on Study leave the Teacher concerned will have to enter into a duty executed agreement with the Institute. A Teacher who is granted Study leave shall, before proceeding on such leave, give a written undertaking that he shall serve the Institute for at least 3 continuous years on his return from such leave.

- (xii) If a Teacher quits the service of the Institute before the expiry of three years, or if, as a result of any unsatisfactory progress report, his Study leave is cancelled at any time by the Governing Body, he shall refund to the Institute, in whole or in part as may be decided by the Governing Body all amounts including leave salary which have been paid to him on account of the grant of such leave.
- (xiii) The Teacher availing Study leave shall submit to the Institute a six-monthly Report of progress in his studies through the Institution or the Instructor, under whom training or study is being pursued. This Report shall be submitted within 30 days of the expiry of every six-month of the Study leave. If the Report does not reach the Institute, payment of leave salary may be deferred till the receipt of such report.
- (xiv) In the event of the Report not being found satisfactory, the Governing Body will have the right to revoke the leave at any time it deems fit.
- (xv) The Teacher shall, on his return from the Study leave after completion of his study, submit to the Institute a Certificate from the Institution of Examination passed or of a special study or training undertaken stating the dates of commencement and termination of the course with the remarks of the Instructor under whose supervision the course was taken.
- (xvi) Not more than 10 percent of Teaching staff in any one Stream at one time shall be granted Study leave provided that at least one person from each stream will be eligible for such leave irrespective of the strength of its Staff. As far as other Staff are concerned, leave shall be granted after ascertaining the Staff strength of the Department or Section.
- (xvii) All applications for Study leave shall, before submission to the Governing Body, be examined by the Principal and the concerned Head of the Department and the Registrar. If thought necessary the applicant shall be interviewed while considering his application for the leave.
- (xviii) The service of the Teacher who fails to return to duty at the expiry of the sanctioned leave may be terminated by the Governing Body without reference to the Teacher concerned as from the date on which he should have rejoined the duty.
- (xix) Application for the Study leave must contain, inter alia, the following data :
 - a) Documents of admission having been made or promised to be made in Institute or Institution.
 - b) The nature of work to be pursued or degree to be taken.
 - c) The scholarship, fellowship or any other financial aids including travel grants, if any, obtained or promised.

4.55 On-Duty Leave

- (i) On-Duty leave may be granted at the discretion of the Principal and/or the Registrar with prior approval on the recommendation of the Head of Department for
 - a) attending Academic Conferences, Symposia, Workshops and Seminars relevant to his discipline on behalf of the Institute;

- b) delivering lectures in Institutions or Universities at the invitation of such Institutions or Universities received by the Institute and accepted by the Principal;
 - c) working on another Institution or Organization, when so deputed by the competent Authority of this Institute;
 - d) for performing any other duty for the Institute or the University.
- (ii) The duration of leave shall be such as may be considered necessary by the sanctioning Authority on each occasion.
- (iii) The leave may be granted with full Pay and Allowances.
- (iv) If an employee goes on duty leave of any nature, he will submit the 'on-duty approval slip' duly signed and endorsed by the Head of Department and duly approved by the Principal or the Registrar to the Administrative Office.

4.56 Leave for Ad-Hoc/Probationary Staff

Any Staff member who is appointed on probationary/Ad-hoc basis in a vacation or non-vacation Department is not entitled to any leave except Casual leave on pro-rata basis unless he has completed one year of service.

4.57 Leave for Emeritus Faculty

Emeritus Professor will be entitled to the same leave rule facility as in case of other regular Vacation Staff members.

4.58 Holiday and Vacation

'Holiday' means a holiday declared as such by the Competent Authority in a Calendar Year as fixed by the affiliated University. The Vacation Staff shall be entitled for Summer and Winter vacation as prescribed from time to time by the Principal on the basis of norms to be prescribed by the affiliating University. During the period of vacation, only classes shall remain suspended.

NOTE:

1. When General Elections to the Lok Sabha/State Assembly/Municipality/ Panchayet or Bye-Elections to Lok Sabha / State Assembly / Municipality / Panchayet are held on a day other than holiday / Off-day / Sunday, the day of polling will be declared as a holiday for employees of the Institute.
2. The competent authorities have the power to sanction any Special Leave considering the merit of the situation.


PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH - 711204

MCKV Institute of Engineering

243, G. T. Road (N), Howrah – 711204.

Minutes of the First Governing Body Meeting of the Autonomous MCKV Institute of Engineering held on 6th October 2020 at 7:00 pm online, through Zoom Webinar Platform.

Members Present: -

1. Mr. Kishan Kumar Kejriwal, Chairman of the Trust, Chairman GB
2. Dr. Suresh Kumar, Prof. Kurukshetra University, Member: UGC Nominee
3. Mr. Ravi Sehgal, MD, Carnation Industries Ltd., Member: Trust Nominee
4. Prof. (Dr.) Amitava Sarkar, Former Director, SOM, MAKAUT, Former Director, IISWBM, Former Professor, University of Calcutta, Member: Trust Nominee
5. Prof. (Dr.) Sajal Dasgupta Renowned Academician and Mentor, Member: Trust Nominee
6. Prof. (Dr.) Pradip Kumar Ray, Dean, VG SoM, Professor, Dept. of I & SE, IIT Kharagpur, Member: Trust (Nominee as Educationist)
7. Dr. Ranjib Biswas, Dean Academics, MCKVIE, Member: Male Teacher Representative
8. Dr. Lina Saha Chakraborty, HOD, HSS Department, MCKVIE, Member: Female Teacher Representative
9. Prof. Buddhadeb Chattopadhyay, Principal, MCKVIE & Ex-officio
10. Mr. Pranabesh Das, Director of Technical Education Govt. of West Bengal, Member: Govt. of WB Nominee, Higher Education Dept. (Tech.)
11. Dr. Sujit Mukherjee, Member, Nominee of MAKAUT, affiliating University.

Special Invitees: -

1. Mr. Abhay Kejriwal, Trustee Member
2. Prof. (Dr.) P. Chakraborty, CEO, MCKV Group, Member
3. Dr. Kalyan Biswas, Assistant Professor (ECE), MCKVIE

Leave of absence granted: -

1. Swami Vedatitanandaji, Correspondent, Ramkrishna Mission Shilpamandira, Belurmath (AICTE Approved), Trust Nominee
2. Dr. Paramita Chatterjee, Associate Professor, EE Dept., IEST, AICTE (ERO Nominee)

Proceedings: - The Chairman of the MCKV Institute of Engineering welcomed all the distinguished members of the Newly Constituted Governing Body as per the norms of the UGC. He requested for self introduction of the members. After self-introduction he requested Prof. Sajal Dasgupta, Renowned Academician & Former DTE, Govt. of West Bengal, the Hon'ble Chairman of the past Board of Governors of the College to Chair the meeting. There was deliberation on the agenda at length.

The following resolutions were unanimously adopted.

Resolutions: -

- 1.1 The progress report of the college from December, 2019 to July, 2020 was presented satisfactorily by the Principal to apprise the Governing Body Members

CHAIRMAN'S
INITIALS



alalini

PRINCIPAL

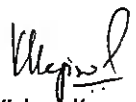
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH-711204

- 1.2 The Governing Body ratified the inclusion of following four members namely as nominees of the Governing Body in the newly constituted Academic Council under UGC Guidelines: (1) **Prof. (Dr.) Santanu Das**, B.Tech. (JU), M.Tech (JU), Ph. D. (IIT-KGP), Head of Mechanical Engineering Dept., Kalyani Government Engineering College, Kalyani, (2) **Mr. Devasish Basu**, B.Tech. (IIT-BHU), M.Tech (IIT-BHU), General Manager (Elec.) Dedicated Freight Corridor Corporation of India Ltd. under the aegis of the Eastern Railways, (3) **Dr. Kamalkishore Vora**, B.Tech. (BVM), M.Tech (VJTI-MU), Ph. D (IIT-MUMBAI Senior Dy. Director & Head, Automotive Research Association of India and (4) **Dr. Shyama Prosad Chowdhury**, B.Tech., M.Tech, Ph. D (UK), Senior. Manager. IBM.
- 1.3 The statutory committees formed as per the Guidelines of UGC, namely the Board of Studies, the Academic Council and the Finance Committee were approved.
- 1.4 The Statutes, Administrative Rules and Regulations of the College were approved.
- 1.5 The responsibility to function **Dr. Debapriya De** as **Controller of Examinations** and **Dr. Indrajit De** as the **Deputy Controller of Examinations** were approved in addition to their normal duty. Regular appointment in the same posts may remain under process.

Finding no other business, the meeting was ended with the vote of thanks to the chair at 9:10 pm.

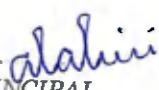
This MoM of the First Meeting of the Governing Body was circulated amongst the Governing Body Members on 19th October, 2020 by e-mail and based on the reply received, it may be inferred that MoM is confirmed by the members by way of circulation.


(Prof. Buddhadeb Chattopadhyay)
Principal


(Kishan Kumar Kejriwal)
Chairman

CHAIRMAN'S
INITIALS




PRINCIPAL
MCKV INSTITUTE OF ENGG.
LILUAH, HOWRAH-711204